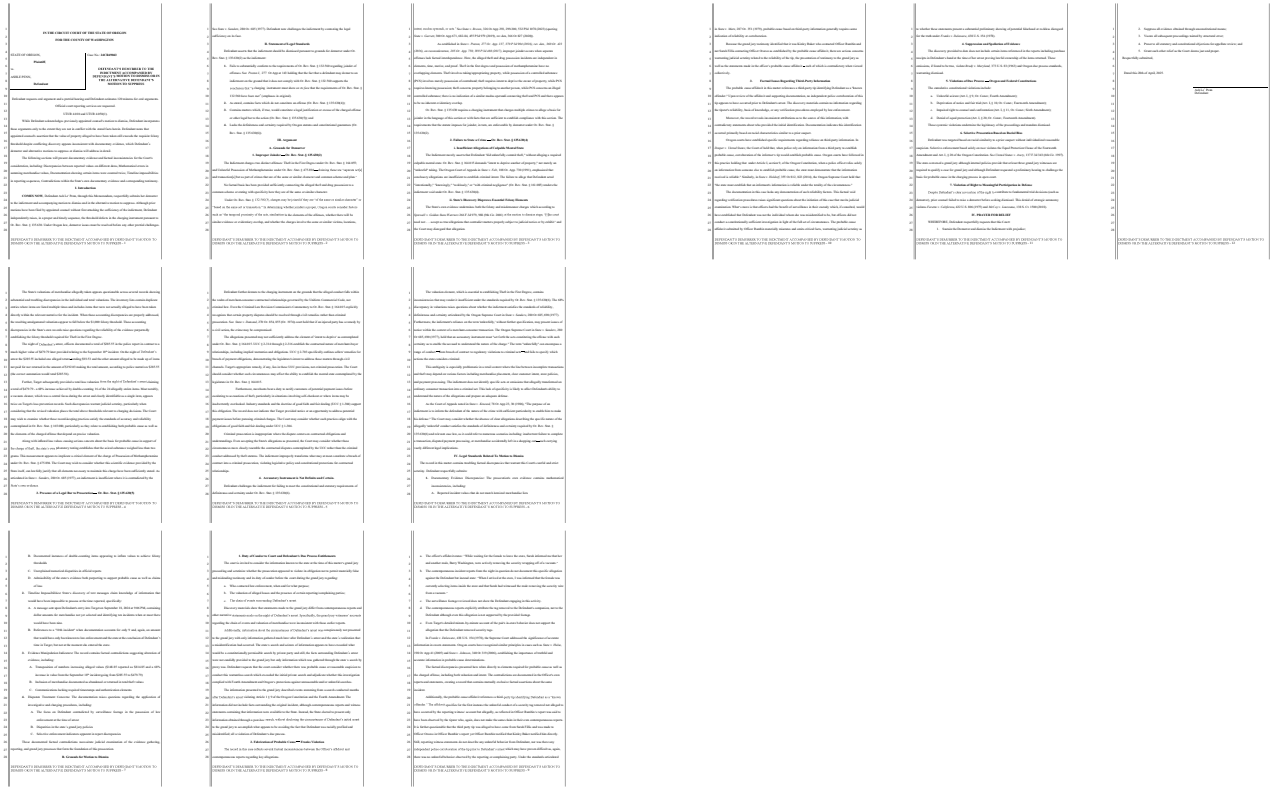

IN THE CIRCUIT COURT OF THE STATE OF OREGON

FOR THE COUNTY OF WASHINGTON

STATE OF OREGON,

Plaintiff,

v.

ASHLE' PENN,

Defendant.

Case No. 24CR49043

EMERGENCY MOTION TO DISMISS WITH PREJUDICE

Disclosure and Certification Pursuant to UTCR 4.010 and 1.090

Pursuant to UTCR 4.010 and 1.090, Defendant certifies that this motion is submitted in good faith and that the legal contentions herein are based on a reasonable inquiry into the law, consistent with applicable ethical and procedural obligations.

I. INTRODUCTION

Defendant Ashle' Penn moves this Court to dismiss the indictment with prejudice pursuant to the Oregon Supreme Court's decision in State v. Roberts, ___ Or. ___ (Feb. 4, 2026), and Article I, Section 11 of the Oregon Constitution. Defendant has been on the Court's unrepresented list since April 29, 2025 — a period of two hundred eighty-six days as of the date of this filing. This exceeds the constitutional maximum established in Roberts by one hundred ninety-six days.

Defendant further moves for dismissal with prejudice on the independent ground that the totality of the State's conduct in this case — from the initial misidentification, through the manufacturing of evidence, the presentation of false testimony to a grand jury, the circumvention of Defendant's demand for a preliminary hearing, the unlawful entry into Defendant's home, the revocation of bail based on unlawfully obtained evidence and a non-existent release condition, and the systematic obstruction of Defendant's access to the courts — constitutes outrageous government misconduct that shocks the conscience and renders continued prosecution fundamentally incompatible with due process.

II. THE RIGHT TO COUNSEL HAS BEEN VIOLATED BEYOND ANY REASONABLE MEASURE

Article I, Section 11 of the Oregon Constitution provides: "In all criminal prosecutions, the accused shall have the right... to be heard by himself and counsel." The Oregon Supreme Court in Roberts held that this right is not merely aspirational — it is enforceable, and its violation requires dismissal.

Defendant was placed on the unrepresented list on April 29, 2025, following the withdrawal of her second appointed counsel. Since that date, Defendant has had no attorney enter an appearance on her behalf. Although the Oregon Public Defense Commission (OPDC) has reflected a recent appointment in its administrative records, OPDC confirmed to Defendant that this designation is administrative record-keeping and does not indicate that new counsel has entered an appearance or been assigned to represent Defendant.

During the two hundred eighty-six days without counsel:

A warrant has been issued for Defendant's arrest. Defendant's bail has been revoked based on evidence derived from an unlawful entry into her home and a release condition that was never reimposed. Defendant has been charged with failure to appear for a hearing of which she received no notice. Defendant's prior counsel's motion to dismiss — which documented contradictions in the arresting officer's sworn statements and identified the derivative use of unlawfully obtained evidence — was denied by the Court without a hearing, without the State filing any response, and after the Court stated on the record that it would not decide anything while Defendant was without counsel. Defendant's demurrer — filed timely and with the right preserved at both arraignments — has received no ruling. Defendant's Motion to Quash Warrant — filed July 1, 2025 — sat unprocessed for over six months, with the Court claiming it was "misrouted" despite Defendant having spoken with court staff about the filing at the time it was made.

Defendant has been unable to secure stable housing and employment for herself and her three children because of the outstanding warrant. Defendant was offered a position through MOTUS recruiting that remains in jeopardy.

III. PREJUDICE IS NOT MERELY PRESUMED — IT IS DOCUMENTED

The Roberts Court recognized that extended denial of counsel creates a presumption of prejudice. Here, the prejudice need not be presumed because it is established by the record:

Substantive motions have been decided adversely to Defendant while she was without counsel. The Court denied Defendant's prior counsel's motion to dismiss — a motion that raised the misidentification, the contradictory sworn statements, and the fruit of the poisonous tree doctrine — without permitting any argument, without an omnibus hearing, and without the State having responded. This occurred after the Court stated at the April 29, 2025 hearing that it would not decide anything because Defendant was without counsel. The denial of a substantive motion under these circumstances is itself prejudice of the highest order.

Defendant's access to the courts has been obstructed. The Motion to Quash was filed July 1, 2025 and went unprocessed for over six months. The demurrer has been ignored. Defendant's contact information was changed by "criminal justice staff" on December 30, 2025 without her request, resulting in failed notice delivery. A hearing was set for today, February 9, 2026, with notice sent by SMS on January 29, February 2, and February 8 — after the original motion requested telephonic appearance and the Presiding Judge's standing orders authorize remote appearances.

The State has continued to take adverse action against Defendant during the period without counsel. Defendant's bail was revoked. A warrant was issued. A failure to appear charge was added. Each of these actions occurred while Defendant was on the unrepresented list, unable to respond through counsel, and unable to effectively advocate for herself because the Court has simultaneously declined to rule on her pro se filings.

Defendant is caught in an impossible position: she cannot have counsel appointed, and she cannot advocate for herself. The Court has told Defendant she would be placed on the unrepresented list and should raise her arguments when counsel is appointed. But counsel has not been appointed. Meanwhile, the Court has denied motions, ignored filings, issued warrants, and revoked bail — all while Defendant stands alone.

IV. THE FAILURE TO APPEAR DOES NOT DISQUALIFY DEFENDANT FROM THE ROBERTS REMEDY

The failure to appear charge arose from a show cause hearing for which the Court's own notice was returned as undelivered. Defendant was unrepresented. Defendant had a pending Motion to Quash before the Court. Defendant had communicated with court staff about the motion and the resending of notice. Defendant's contact information was subsequently changed without her authorization by criminal justice staff on December 30, 2025, resulting in failed delivery of the hearing notice.

A failure to appear that results from the Court's own failed notice process — compounded by an unauthorized change to Defendant's contact information — cannot serve as a basis to deny the constitutional remedy that Roberts requires. The purpose of Roberts is to address systemic failures in the provision of counsel. Permitting the State to circumvent that remedy by pointing to a failure to appear caused by the Court's own administrative failures would render Roberts meaningless.

V. DISMISSAL WITH PREJUDICE IS THE ONLY ADEQUATE REMEDY

Dismissal without prejudice would permit the State to refile the charges and continue to benefit from the constitutional violations that have pervaded this case from its inception. The State would retain:

The indictment procured through a grand jury at which false testimony was presented regarding the circumstances of the arrest. The evidence manufactured after the acknowledged misidentification, when Officer Rambin directed Target to compile footage of Defendant. The booking photograph obtained from the unlawful September 18, 2024 arrest, which was used by an individual with an expired DPSST certification to "connect" Defendant to other incidents. The information derived from the unlawful May 10, 2025 entry into Defendant's home, which was used to revoke bail and issue the outstanding warrant.

Dismissal without prejudice would also leave unaddressed the pattern of prosecutorial conduct documented in this case:

The State arrested Defendant based on a misidentification and, rather than dismissing the case when the error was acknowledged, directed the manufacturing of evidence to maintain the prosecution. The State circumvented Defendant's demand for a preliminary hearing by taking the case to a grand jury, where it permitted testimony that contradicted the arresting officer's own sworn affidavit. The State entered Defendant's home under the claimed authority of a document that the State's own filings in the related contempt case (25CN02140) reveal was not a judicial warrant but an administrative supervisory order — one that defense counsel stated under oath did not exist in written form, and that materialized in the record approximately seventy-five days later. The prosecutor who defended the entry in the contempt case alternated between calling the document an "arrest order" and an "arrest warrant" within the same brief, while simultaneously conceding that the standard underlying the document was "reasonable grounds" rather than the probable cause required by Article I, § 9 for a warrant authorizing home entry. That prosecutor is no longer employed by the Washington County District Attorney's Office. The individual who purportedly signed the document was laid off by the agency shortly after the entry. Efforts to subpoena that individual for testimony have been met with resistance.

The State then used the same officer who misidentified Defendant — Officer Rambin — to "confirm" Defendant's identity for purposes of the contempt charge, based not on body-worn camera footage or personal observation but on a review of other officers' reports. This officer has a direct conflict of interest: his participation in the original misidentification gives him a personal stake in seeing the prosecution maintained.

The State revoked Defendant's bail based on a no-contact condition that was never reimposed at re-arraignment on the indictment, applied to an individual who is not a co-defendant, and supported only by the conflicted officer's report-based conclusion that contact "appeared" to have occurred.

At the April 29, 2025 hearing, the Court stated that it had "already pulled [Defendant's] cases" and that "the law is not in [Defendant's] favor" — before any substantive hearing had occurred, before any evidence had been presented, and before any legal arguments had been heard. This statement, combined with the Court's subsequent denial of the motion to dismiss without a hearing and its failure to process Defendant's pro se filings, raises concerns that could be construed as prejudgment.

The constellation of violations in this case — racial misidentification as the genesis of the prosecution, manufacturing of evidence after acknowledged innocence, false testimony before a grand jury, circumvention of the right to a preliminary hearing, unlawful entry into a home, revocation of bail on a non-existent condition using a conflicted

officer's identification, denial of counsel for two hundred eighty-six days, obstruction of pro se filings, and adverse rulings made while Defendant was without counsel after the Court said it would not rule — is not a collection of isolated errors. It is a pattern. And the only remedy that addresses a pattern of this magnitude is dismissal with prejudice.

VI. RELIEF REQUESTED

Defendant respectfully moves this Court to:

a. Dismiss the indictment in Case No. 24CR49043 with prejudice pursuant to State v. Roberts, ___ Or. ___ (Feb. 4, 2026), and Article I, Section 11 of the Oregon Constitution;

b. Quash the outstanding warrant for Defendant's arrest;

c. Vacate the bail revocation order;

d. Dismiss the failure to appear charge;

e. In the alternative, if the Court declines to dismiss with prejudice, suppress all evidence derived from the unlawful September 18, 2024 arrest and the unlawful May 10, 2025 entry into Defendant's home, strike the no-contact condition, reinstate bail, and set a hearing at which the probable cause for the original arrest can be examined.

Defendant has maintained complete records of all proceedings, communications, and events referenced herein, including audio recordings of hearings and telephone calls with court staff, and is prepared to provide these to the Court upon request.

DATED this February 9, 2026.

Respectfully submitted,

Ashle' Penn

Defendant, Pro Se

IN THE CIRCUIT COURT OF THE STATE OF OREGON

FOR THE COUNTY OF WASHINGTON

STATE OF OREGON,

Plaintiff,

v.

ASHLE' PENN,

Defendant.

Case No. 24CR49043

SUPPLEMENTAL MEMORANDUM IN SUPPORT OF MOTION TO QUASH WARRANT

Disclosure and Certification Pursuant to UTCR 4.010 and 1.090

Pursuant to UTCR 4.010 and 1.090, Defendant certifies that this memorandum is submitted in good faith and that the legal contentions herein are based on a reasonable inquiry into the law, consistent with applicable ethical and procedural obligations. No known factual misrepresentations are presented, and all legal authorities are either cited directly or drawn from published court opinions or statutory texts.

I. INTRODUCTION

This supplemental memorandum is filed in support of Defendant's Motion to Quash Warrant, originally filed on July 1, 2025. Defendant respectfully submits this supplement to place before the Court a complete factual and legal record concerning the constellation of constitutional violations, evidentiary deficiencies, and procedural irregularities that have compounded since the original motion was filed.

This case began with a misidentification. On September 18, 2024, Officer David Rambin arrested Defendant outside a Target store in Washington County because he believed she was a different Black woman who had committed a theft the day before. Officer Rambin's own supplemental report confirms that Defendant was not the person he believed her to be. Rather than acknowledge the error and dismiss the case, the State has engaged in a sustained course of conduct to manufacture evidence, launder charges through a grand jury, and suppress the factual record of the misidentification — all while Defendant has been denied the right to counsel for two hundred eighty-six days and counting.

The warrant that is the subject of this motion issued after the Court revoked Defendant's bail based on information derived from an unlawful, warrantless entry into Defendant's private residence on May 10, 2025. As the record in the related contempt case (25CN02140) now confirms — through the State's own filings — officers entered Defendant's home without a valid judicial warrant, without consent, and without exigent circumstances. The document the State ultimately produced to justify the entry is an administrative supervisory order, not a judicial warrant, and it materialized in the record approximately seventy-five days after defense counsel in the contempt case first stated under oath that "no written or signed warrant was prepared or issued."

Defendant moves this Court to quash the outstanding warrant, suppress all evidence derived from the unlawful entry, and strike the no-contact condition that was never reimposed at Defendant's February 2025 re-arraignment on the indictment.

II. FACTUAL BACKGROUND

A. The September 18, 2024 Arrest: Misidentification and Its Aftermath

On September 18, 2024, at approximately 9:18 PM, Defendant exited a Target store in Washington County. Officers arrested Defendant immediately — within approximately three minutes of her exit — placing her in handcuffs and into a patrol vehicle before conducting any investigation inside the store.

Officer Rambin's own words upon arresting Defendant were: "You were here yesterday." Defendant responded that she was not. She was not at Target the day before. Officer Rambin had reviewed surveillance footage from the prior day's theft approximately three hours before Defendant entered the store that evening. He believed Defendant was the woman depicted in that footage. He was wrong.

Officer Stone's report confirms that upon his arrival — while Defendant was still inside the store shopping — Deputy Orozco informed him that "two suspects were currently being monitored in the store" and that "the suspects had already tampered with the security device on a vacuum cleaner." Officer Stone further states that when he arrived on scene, he "met up with Deputy Rambin who was waiting near the main entrance/exit" and that "Deputy Rambin advised me that he had probable cause to arrest Ashle at that point."

This statement is significant. Officer Rambin communicated to fellow officers that he possessed probable cause to arrest Defendant before she exited the store — before any post-exit investigation, before any review of that evening's surveillance footage, and before any determination of whether Defendant had committed any criminal act during her visit. The only basis for this claimed probable cause was the prior day's theft committed by a different person.

The probable cause affidavit for warrantless arrest confirms this: Officer Rambin stated therein that Defendant was at the store the day before and had stolen a specified amount, and that officers were called back to Target because they believed Defendant was the same person. This sworn statement is now contradicted by Officer Rambin's own supplemental report acknowledging that Defendant was not the person he believed her to be.

The Sarah Fillis play-by-play report — the contemporaneous minute-by-minute account of Defendant's time in the store — contains no mention of any security tag being removed from any item. The total video evidence submitted by the State into discovery amounts to thirteen minutes and four seconds of a thirty-five minute and thirty second period, leaving twenty-two minutes and twenty-six seconds — approximately sixty-three percent of the total period — unaccounted for. No video evidence depicts Defendant engaging in any criminal activity.

B. The Contact Chain: Fillis to Orozco to Rambin

The record reveals a critical discrepancy in the chain of contact that brought officers to Target on September 18, 2024. According to dispatch records, Officer Rambin was dispatched at 9:14 PM and arrived at 9:16 PM. Officer Orozco was dispatched at 9:15 PM and arrived at 9:17 PM. Officer Stone was dispatched at 9:15 PM and arrived at 9:37 PM.

Sarah Fillis, the Target Loss Prevention Specialist, contacted Officer Orozco — not Officer Rambin — to report that "the girl from the night before" was back in the store. Officer Orozco then contacted Officer Rambin. Yet Officer Orozco's contemporaneous report contains no mention whatsoever of having been contacted by Fillis. This omission is material. And Officer Rambin's probable cause affidavit implies that Fillis contacted him directly, while his grand jury testimony — according to Defendant's prior counsel's motion to dismiss — states that he was contacted by Kinley Baker, a different LP officer who was not present the night of the arrest.

The State discovered text messages in February 2025 — after the January 14, 2025 grand jury — apparently between Target LP personnel and officers, which contradict the narrative that officers were present for an "unrelated matter." These messages were not presented to the grand jury.

C. Post-Arrest Manufacturing of Evidence

After Officer Rambin acknowledged in a supplemental report that Defendant was not the person he believed her to be, the investigation did not cease — it intensified. On December 27, 2024, Officer Rambin returned to Target and directed Target personnel to compile all security footage of Defendant from prior visits to the store. This directive came after the acknowledged misidentification and was designed to manufacture evidence to maintain a prosecution that lacked probable cause from its inception.

Officer Rambin identifies Travis Gower, whom he describes as an "intelligence analyst" with the Washington County Sheriff's Office, as the individual who contacted him on either October 1 or October 9, 2024 — Rambin uses both dates in different reports — to "connect" Defendant to other incidents based on her booking photograph. However, Travis Gower's DPSST certification expired in 2020 and has not been renewed. While civilian employees may have access to certain information systems, the investigatory actions attributed to Gower — analyzing booking photographs, connecting an individual to prior incidents, and conveying those findings to a sworn officer for the purpose of building a criminal case — are functions restricted to certified law enforcement personnel. The State has not identified any other individual who conducted this investigation or explained how Gower came into possession of Defendant's booking photograph.

This conduct implicates the principles articulated in Spencer v. Krause, 2021 WL 4480872 (D. Or. 2021), holding that post-investigation efforts undertaken after known innocence violate constitutional protections. See also Devereaux v. Abbey, 263 F.3d 1070, 1074-75 (9th Cir. 2001) (en banc) (recognizing a constitutional violation where officers manufacture evidence to maintain a prosecution). The State's directive to Target to compile footage after the acknowledged misidentification is precisely the type of evidence manufacturing that the Constitution prohibits.

D. The Grand Jury: False Testimony and Circumvention of Preliminary Hearing

Defendant demanded a preliminary hearing in open court on October 11, 2024. Defendant's second appointed counsel filed a written motion for preliminary hearing on December 24, 2024. Under ORS 135.070 and 135.173, a preliminary hearing is to be conducted within specified timeframes. Instead, the State took the case to a grand jury on January 14, 2025 — well outside the timeframe for a preliminary hearing — and obtained an indictment.

At the grand jury, the State did not present Kinley Baker, the LP officer who was present the night of the arrest. It presented a different LP officer. The testifying witness told the grand jury that officers were present at Target for an "unrelated matter." This representation is directly contradicted by Officer Rambin's own probable cause affidavit for warrantless arrest, which states that officers were called to Target specifically because they believed Defendant was the woman from the prior day's theft.

The State thus presented two irreconcilable sworn statements from the same officer: one stating that officers were at Target specifically for Defendant based on the prior day's theft, and another — through a witness at grand jury — stating that officers were there for an unrelated matter. The State was in possession of both statements. The prosecutor who conducted the grand jury later discovered the text messages in February 2025 that confirmed officers were there specifically for Defendant. The State's awareness of the contradictory affidavit at the time of the grand jury, combined with its failure to correct the false testimony, raises serious concerns under ORS 162.295 (subornation of perjury) and the prosecutor's obligations under Oregon RPC 3.3(a) and 3.8.

Furthermore, Officer Rambin's grand jury testimony — as documented in Defendant's prior counsel's motion to dismiss — stated that he was contacted by Kinley Baker on the night of the arrest. Body-worn camera footage contradicts this: when Officer Rambin arrived at Target to pick up the prior day's surveillance footage, Baker was not present. It was Sarah Fillis who provided the footage and who later contacted Officer Orozco about Defendant's presence in the store. This is a third version of events from the same officer, each given under different circumstances, each contradicting the others.

E. The May 10, 2025 Entry: No Valid Warrant, No Consent, No Exigent Circumstances

On May 10, 2025, Washington County Sheriff's deputies responded to a call at Defendant's residence. Upon arrival, Defendant informed officers that she no longer required their assistance and asked them to leave. Officers then informed Defendant that her partner, Barry Washington, had a "felony warrant" and needed to come out.

Defendant did not consent to entry. Defendant stepped outside her front door to speak with officers and closed and locked her door each time she went back inside. When Defendant returned outside to inform officers that Mr. Washington appeared to have left, officers entered the residence.

The State's own filings in the related contempt case (25CN02140) reveal the following:

First, defense counsel Jake Brugger stated in his July 3, 2025 motion to suppress that "the WCCC warrant was entered into the Law Enforcement Data System (LEDS), but no written or signed warrant was prepared or issued." This was a sworn declaration.

Second, the State — through Deputy District Attorney Jade Sawyer — responded on July 22, 2025 by producing for the first time a document titled "Warrant Authorization and Suspension Order" signed by a "Supervising Authority / Designee." This document materialized approximately seventy-five days after defense counsel first requested it and stated none existed.

Third, the State's own brief reveals a telling inconsistency. In the Statement of Facts, DDA Sawyer repeatedly refers to the document as an "arrest order": "Dispatch notified the deputies of an active WCCC arrest order"; "Deputy King notified Ms. Penn about the arrest order"; "Deputy King verified the active arrest order." But in the Argument section of the same brief, Sawyer switches terminology and calls it an "arrest warrant": "lawfully conducted under a valid arrest warrant pursuant to ORS 144.350"; "the WCCC arrest warrant was validly issued"; "the arrest warrant justifies the search and arrest." This alternation between "arrest order" and "arrest warrant" within a single filing is not mere imprecision — it reflects the State's awareness that the legal distinction between the two determines whether the entry into Defendant's home was constitutional.

Fourth, DDA Sawyer herself acknowledged the critical legal distinction: "Although Article I, Section 9 of the Oregon Constitution requires that warrants be supported by 'probable cause,' Or Const Art I, § 9, in the context of PPS violations, the statute establishes a specific statutory framework based on 'reasonable grounds.' ORS 144.350(1)." The State thus concedes that the administrative order is predicated on "reasonable

grounds" — a standard less than probable cause — and not on the probable cause required by Article I, § 9 for a warrant authorizing entry into a home.

Fifth, the document itself — the "Warrant Authorization and Suspension Order" — is directed "TO: ANY SHERIFF, PEACE OFFICER, PAROLE OFFICER, OR CORRECTIONS OFFICER" and states: "YOU ARE HEREBY AUTHORIZED AND DIRECTED TO TAKE CUSTODY AND HAVE THIS PERSON DETAINED UNTIL FURTHER ORDER OF THE SUPERVISORY AUTHORITY." It is signed by a "Supervising Authority / Designee" — not a judge, not a magistrate, not a neutral and detached judicial officer. It bears an effective date of November 26, 2024, and was purportedly signed by Kenneth Rolfe. Mr. Rolfe was laid off by the agency on or about May 27, 2025 — shortly after the entry at issue — and has not been called to testify regarding the document's creation or authenticity. A request to subpoena Mr. Rolfe in the related contempt case has been met with resistance.

Under Payton v. New York, 445 U.S. 573, 586 (1980), entry into a private residence to effect an arrest requires a judicial warrant. An administrative supervisory order based on "reasonable grounds" — the State's own characterization of the standard — does not satisfy this constitutional requirement. See also State v. Meharry, 342 Or. 173, 177 (2006) ("A search conducted without a warrant is per se unreasonable unless it falls within one of the few specifically established and carefully delineated exceptions to the warrant requirement.").

Officers told Defendant that Mr. Washington had a "felony warrant." The document the State ultimately produced is not a felony warrant — it is an administrative supervisory order. Officers misrepresented the nature of the authority they claimed to possess, which further vitiates any claim of lawful entry.

F. The Rambin Identification — Conflict of Interest and Circular Reasoning

Two days after the May 10, 2025 entry, DDA Jade Sawyer asked Deputy David Rambin to confirm whether Mr. Washington and Ms. Penn were the parties involved in the arrest. Deputy Rambin confirmed that they were, and the State filed the contempt matter.

This is the same Officer Rambin who misidentified Defendant on September 18, 2024. The same officer who arrested Defendant because he believed she was a different Black woman. The same officer whose supplemental report acknowledges the misidentification. The same officer who provided contradictory sworn statements about the circumstances of the arrest.

Asking this officer to identify Defendant for purposes of a new charge is circular: the officer whose identification error initiated this entire sequence of events is called upon to make yet another identification — this time not from body-worn camera footage or personal observation, but from a review of other officers' reports and the fact that Defendant's name was "run" during the May 10 incident. Officer Rambin's supplemental report states that based on his review of reports and the running of Defendant's name, it "appeared" that contact had been made between Defendant and Mr. Washington.

"Appeared" is not the standard. An appearance of contact derived from a report review by a conflicted officer does not constitute the reliable evidence necessary to support revocation of bail. See State v. Sargent, 110 Or. App. 194 (1991) (requiring competent evidence to support bail revocation).

G. Release Conditions Were Not Reimposed at Re-Arraignment

When Defendant was re-arraigned on the indictment in February 2025, the Court did not reimpose the no-contact condition that had been part of the original release agreement. Release conditions do not automatically transfer from a DA's information to an indictment. They must be explicitly stated at the time of the new proceeding. See ORS 135.230 et seq. (governing release agreements and conditions). Defendant was already in the community at the time of re-arraignment, and no discussion of release conditions took place.

The bail revocation was predicated on a violation of a condition that was no longer in effect. Moreover, Defendant and Mr. Washington are not co-defendants. They were arrested on the same night but were never charged together, never tried together, and have separate case numbers. The release agreement's reference to "co-defendant" is a mischaracterization that the State has exploited to bring Defendant within the scope of a condition that should not apply.

H. The Bond Revocation: No Notice, No Counsel, No Due Process

The Court revoked Defendant's bond after receiving return mail for a show cause hearing notice. The hearing was held while Defendant was unrepresented and without notice to Defendant. Defendant was subsequently charged with failure to appear — for a hearing she did not know was occurring, for which the Court's own mail was returned undelivered, while she was on the unrepresented list without counsel.

I. The Court's Processing of Defendant's Filings

Defendant filed the original Motion to Quash Warrant on July 1, 2025. The motion requested a telephonic hearing. The Court did not act on the motion for over six months. When Defendant called to inquire, she was told the motion had been "misrouted" — a characterization that is difficult to reconcile with the fact that Defendant spoke with court staff about the motion at the time of filing, and the clerk confirmed that notice would be resent to the address on file.

Defendant's demurrer, filed prior to the converted omnibus hearing and before any substantive motion had been decided in the case, has similarly received no ruling. Defendant preserved the right to challenge the charging instrument at both arraignments and filed the demurrer in a timely manner. The demurrer remains pending without acknowledgment.

Defendant's prior counsel's motion to dismiss and suppress — which documented the contradictions in Officer Rambin's sworn statements and identified the derivative use of unlawfully obtained evidence — was denied by this Court without an omnibus hearing, without oral argument, without the State having filed any response, and after the Court stated on the record at the April 29, 2025 hearing that it would not be deciding anything that day because Defendant was without counsel.

J. The Court's Statements at the April 29, 2025 Hearing

At the April 29, 2025 hearing — which was originally scheduled as an omnibus hearing but was converted to a motion to withdraw hearing for Defendant's second appointed counsel — the following occurred:

Defendant's counsel, Anna Lasher, moved to withdraw citing a personal conflict of interest. The Court granted the withdrawal. The Court then stated that it would not decide any pending motions because Defendant was without counsel and that Defendant would be placed on the unrepresented list.

However, the Court also made the following statements: that it had "already pulled [Defendant's] cases" and that "the law is not in [Defendant's] favor"; that Defendant "gets upset when [her] attorneys won't do what [she] wants them to"; and that Defendant could not object to this characterization. When Defendant attempted to explain that her only concern was that her attorneys inform the Court of the misidentification, the Court cut her off.

The Court's reference to communications with Defendant's first attorney — which occurred in a different judge's chambers with no record — raises concerns about the disclosure of privileged attorney-client communications without Defendant's waiver. The Court's statement that it had "already pulled [Defendant's] cases" and that "the law is not in [her] favor" — made before any substantive hearing, before any evidence was presented, and before any legal arguments were heard — could be construed as prejudgment.

III. LEGAL ARGUMENT

A. The Warrant Must Be Quashed Because It Rests on Unlawfully Obtained Evidence

The warrant for Defendant's arrest issued as a consequence of the bail revocation. The bail revocation was predicated on an alleged violation of a no-contact condition. The evidence of the alleged violation was derived entirely from the May 10, 2025 entry into Defendant's home — an entry conducted without a valid judicial warrant, without consent, and without exigent circumstances.

Under the fruit of the poisonous tree doctrine, evidence obtained as a direct or indirect result of an unconstitutional search or seizure must be suppressed. Wong Sun v. United States, 371 U.S. 471, 484-85 (1963). Oregon's exclusionary rule under Article I, § 9 is at least as protective as the federal rule. State v. Hall, 339 Or. 7, 22 (2005).

The State bears the burden of demonstrating that the evidence it obtained would have been discovered through lawful means independent of the constitutional violation. Nix v. Williams, 467 U.S. 431, 444 (1984); State v. Miller, 300 Or. 203, 227 (1985). The State has made no such showing. The only evidence linking Defendant to Mr. Washington on May 10, 2025 was derived from officers' presence inside Defendant's home — presence that was itself unlawful.

B. The No-Contact Condition Was Not in Effect

Release conditions imposed under a DA's information do not automatically carry forward to an indictment. When Defendant was re-arraigned on the indictment in February 2025, the Court did not reimpose the no-contact condition. Conditions of release must be explicitly stated. ORS 135.230 et seq. A condition that was not imposed cannot be violated, and a bail revocation predicated on the violation of a non-existent condition is void.

C. The Evidence Derived from the September 2024 Arrest Must Be Suppressed

The September 18, 2024 arrest was conducted without probable cause. The sole basis for the arrest was Officer Rambin's mistaken belief that Defendant was a different person who had committed a theft the day before. Officer Rambin's own supplemental report confirms the misidentification. The probable cause affidavit for warrantless arrest — which states that Defendant was at the store the day before — is now known to be false.

All evidence obtained as a result of this unlawful arrest — including Defendant's booking photograph, which was subsequently used to "connect" Defendant to other incidents — is fruit of the poisonous tree and must be suppressed. Wong Sun, 371 U.S. at 484-85.

The State cannot rely on the inevitable discovery doctrine because it has offered no evidence that Defendant would have been connected to any prior incidents through any means independent of the unlawful arrest and the use of the resulting booking photograph. The investigation that connected Defendant to other incidents was conducted by Travis Gower, whose DPSST certification had been expired since 2020, using the booking photograph obtained from the unlawful arrest. There is no independent source.

D. The State's Conduct Constitutes Outrageous Government Misconduct

The Due Process Clause prohibits the government from engaging in conduct that "shocks the conscience." Rochin v. California, 342 U.S. 165, 172 (1952); State v. Lively, 321 Or. 1, 14 (1995). The following constellation of facts, taken together, presents a pattern of conduct that meets this standard:

The State arrested Defendant based on a misidentification. The arresting officer acknowledged the misidentification in a supplemental report. Rather than dismiss the case, the State directed Target to manufacture evidence by compiling footage of Defendant from prior visits. See Spencer v. Krause, 2021 WL 4480872 (D. Or. 2021) (holding that post-investigation efforts after known innocence violate constitutional protections); Devereaux v. Abbey, 263 F.3d 1070, 1074-75 (9th Cir. 2001) (en banc). See also Abercrombie v. Beam, 2023 WL 2206057 (D. Or. 2023) (recognizing constitutional right to adequate pre-arrest investigation).

The State used an uncertified individual to connect Defendant to other incidents using the booking photograph from the unlawful arrest. The State circumvented Defendant's demand for a preliminary hearing by taking the case to a grand jury, where it permitted false testimony regarding the circumstances of the arrest. The State's own prosecutor later discovered text messages contradicting the grand jury testimony and took no corrective action.

The State entered Defendant's home without a valid judicial warrant, used information from that entry to revoke Defendant's bail, and then issued a warrant for Defendant's arrest based on the revocation. The State revoked Defendant's bail based on a no-contact condition that was never reimposed and relied on the identification of a conflicted officer who reviewed reports rather than evidence.

The State has left Defendant on the unrepresented list for two hundred eighty-six days. The State has failed to process Defendant's filings. The Court denied Defendant's prior counsel's motion to dismiss without a hearing, without the State responding, and after stating on the record that it would not decide anything while Defendant was without counsel.

This is not a case of isolated error. This is a pattern of compounding constitutional violations, each building upon the last, each designed to maintain a prosecution that lacks any lawful foundation.

E. Dismissal With Prejudice Is the Only Adequate Remedy

The Oregon Supreme Court's recent decision in State v. Roberts, ___ Or. ___ (Feb. 4, 2026), established that criminal charges must be dismissed when the State fails to provide counsel within constitutionally required timeframes. The Court recognized that dismissal with prejudice is appropriate where the delay has caused actual prejudice to the defendant.

Here, the prejudice is not speculative — it is documented. Defendant has been without counsel for two hundred eighty-six days. During that time: a warrant has been issued for her arrest based on unlawfully obtained evidence; her bail has been revoked based on a condition that was never reimposed; her filings have gone unprocessed; her demurrer has been ignored; her prior counsel's motion to dismiss was denied without a hearing; and she has been unable to secure employment or housing for herself and her three children because of the outstanding warrant.

Dismissal without prejudice would permit the State to simply refile — and to continue benefiting from the very constitutional violations documented herein. The State would retain the unlawfully obtained evidence, the manufactured surveillance footage, and the grand jury indictment procured through false testimony. The misidentification would remain unaddressed. The pattern of misconduct would face no consequence.

The purpose of the exclusionary rule is not merely to suppress evidence in a single proceeding — it is to deter unconstitutional government conduct. United States v. Calandra, 414 U.S. 338, 347 (1974). Where the government's conduct has been so pervasive and so fundamentally at odds with constitutional requirements that no remedy short of dismissal with prejudice can adequately address the harm, the Court must act accordingly.

F. The Failure to Appear Charge Cannot Stand

The failure to appear charge arose from a show cause hearing for which the Court's own notice was returned as undelivered. Defendant was unrepresented at the time. Defendant had an active motion to quash pending before the Court. Defendant had communicated with court staff about the motion and was told that notice would be resent. A failure to appear charge predicated on a hearing for which the defendant received no actual notice, while unrepresented and while the Court was aware of the defendant's pending motion, does not satisfy due process. See State v. Probst, 339 Or. 612, 625 (2005) (due process requires adequate notice).

Furthermore, on December 30, 2025, Defendant's contact information was changed by "criminal justice staff" without Defendant's request or authorization. This unauthorized change resulted in failed delivery of subsequent notices. Defendant did not learn of the hearing set for February 9, 2026 until SMS notices were sent on January 29, February 2, and February 8, 2026. Defendant's original motion to quash requested telephonic appearance. The Presiding Judge's standing orders for Washington County Circuit Court authorize remote appearances. The Court initially granted and then denied Defendant's request for telephonic appearance for today's hearing, without explanation.

IV. RELIEF REQUESTED

Defendant respectfully requests that this Court:

a. Quash the outstanding warrant for Defendant's arrest;

b. Suppress all evidence obtained as a result of the unlawful entry into Defendant's home on May 10, 2025, and all derivative evidence thereof;

c. Suppress all evidence obtained as a result of the unlawful arrest on September 18, 2024, including but not limited to the booking photograph and all evidence derived from its use;

d. Strike the no-contact condition from the release agreement as it was not reimposed at re-arraignment;

e. Reinstate bail with only constitutionally permissible conditions;

f. Dismiss the failure to appear charge;

g. Dismiss the indictment with prejudice based on outrageous government misconduct, the denial of the right to counsel under Article I, § 11 and State v. Roberts, and the cumulative constitutional violations documented herein.

Defendant has maintained pristine records throughout these proceedings, has recorded all hearings and calls to protect herself, and is prepared to provide the Court with audio recordings of the hearings and communications referenced herein to verify the accuracy of the factual representations made in this memorandum.

DATED this February 9, 2026.

Respectfully submitted,

Ashle' Penn

Defendant, Pro Se

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON

STATE OF OREGON,
Plaintiff,

v.

ASHLE' PENN,
Defendant.

Case No. 24CR49043

MOTION TO SET ASIDE THE FEBRUARY 9, 2026 PROCEEDING, MOTION FOR DISMISSAL WITH PREJUDICE, AND MEMORANDUM IN SUPPORT

Disclosure and Certification Pursuant to UTCR 4.010 and 1.090

Pursuant to UTCR 4.010 and 1.090, Defendant certifies that this motion is submitted in good faith and that the legal contentions herein are based on a reasonable inquiry into the law, consistent with applicable ethical and procedural obligations. No known factual misrepresentations are contained herein, and all legal authorities are either cited directly or drawn from published court opinions, statutory texts, or official government publications.

I. INTRODUCTION

On February 9, 2026, this Court proceeded on Defendant's Motion to Quash Warrant — a motion Defendant herself filed on July 1, 2025 — without Defendant present and without Defendant having received constitutionally adequate notice of the hearing. This motion asks the Court to set aside whatever ruling was entered on that date and to dismiss this case with prejudice.

This is not a motion about a missed court date. This is a motion about a system of compounding state-caused failures — from misrouted filings to unauthorized modification of Defendant's contact information by criminal justice staff to the Oregon Judicial Department's own acknowledgment that its text message program is not formal notice — that deprived Defendant of her constitutional right to be present and heard before any liberty-affecting decision was made.

But the February 9 hearing is only the latest entry in a record that now spans seventeen months of constitutional violations. This case began when Officer David Rambin arrested Defendant because he believed she was a different Black woman. His own supplemental report confirms the misidentification. When Defendant raised this fact before this Court, the Court stated on the record: "That doesn't matter."

It does. When law enforcement officers arrest someone based solely on a false belief that the arrestee is someone she is not — and the only information known to officers at the moment of arrest is their false belief — then every event that follows is tainted by the original misidentification. Unless the State can demonstrate that the evidence it subsequently gathered would have been inevitably discovered through independent, lawful means, the exclusionary rule prohibits its use. Wong Sun v. United States, 371 U.S. 471, 484-85 (1963); State v. Hall, 339 Or. 7, 22 (2005). The State has made no such showing. It cannot, because the evidence it relies upon was manufactured after the acknowledged misidentification, derived from a booking photograph obtained through an unlawful arrest, and laundered through a grand jury that received false testimony.

Defendant moves this Court to:

(a) Set aside any ruling entered on February 9, 2026, on due process grounds;
(b) Dismiss the indictment with prejudice pursuant to State v. Roberts, ___ Or. ___ (Feb. 4, 2026), and Article I, Section 11 of the Oregon Constitution;
(c) Dismiss the indictment with prejudice on the independent ground of outrageous government misconduct;
(d) Suppress all evidence derived from the unlawful September 18, 2024 arrest and the unlawful May 10, 2025 entry into Defendant's home;
(e) Quash the outstanding warrant;
(f) Strike the no-contact condition that was never reimposed at re-arraignment;
(g) Dismiss the failure to appear charge; and
(h) In the alternative, if the Court declines dismissal, reinstate bail with only constitutionally permissible conditions and set an evidentiary hearing at which the probable cause for the original arrest can be examined.

This motion is made pursuant to the Fourth and Fourteenth Amendments to the United States Constitution; Article I, Sections 9, 10, 11, and 12 of the Oregon Constitution; ORS 133.005 et seq.; ORS 133.140; ORS 135.070; ORS 135.173; ORS 135.230 et seq.; ORS 135.240 et seq.; ORS 34.110; ORS 8.225; UTCR 4.010; and applicable case law.

II. THE FEBRUARY 9, 2026 PROCEEDING MUST BE SET ASIDE

A. Defendant Did Not Receive Constitutionally Adequate Notice

Due process requires that before a court takes any action affecting a person's liberty, that person must receive notice "reasonably calculated, under all the circumstances, to apprise interested parties of the pendency of the action and afford them an opportunity to present their objections." Mullane v. Central Hanover Bank & Trust Co., 339 U.S. 306, 314 (1950). This principle applies with particular force in criminal proceedings, where the stakes involve personal liberty. See State v. Noble, 314 Or. 624, 632 (1992) (emphasizing due process requirements for proceedings that may result in loss of liberty).

Defendant did not receive actual notice of the February 9, 2026 hearing. The chronology of the notice failure is as follows:

Defendant filed the Motion to Quash Warrant on July 1, 2025, requesting a telephonic hearing. The motion sat unprocessed for over six months. When Defendant called the court to inquire, she was told the motion had been "misrouted." Defendant had, in fact, spoken with court staff at the time of filing about the motion, and the clerk confirmed that notice would be resent to the address on file. This is inconsistent with the claim of misrouting.

On December 30, 2025, Defendant's contact information in the court's system was changed by "criminal justice staff" — a change Defendant did not request, did not authorize, and did not know about. This unauthorized modification resulted in failed delivery of subsequent communications.

The Court set the hearing for February 9, 2026. SMS text message notifications were sent on January 29, February 2, and February 8, 2026. Defendant confirmed with the clerk that text delivery to the modified contact information had failed. The Court's formal mailed notice, if any, was sent to an address from which mail had previously been returned undelivered — a fact the Court was aware of from prior proceedings.

The Oregon Judicial Department's own published materials state unambiguously that text message notifications are not formal legal notice. The OJD's FAQ page states:

"Are these official court notices? No. Text message notifications do not replace official court notices. They are supplemental communications that allow parties to receive text message hearing reminders and updates. Text message notifications should not be relied upon as your primary source for hearing information."

The OJD's general information page further states:

"Text message hearing notifications are for your convenience only. It is your responsibility to ensure that you are aware of your court dates and attend court at the scheduled date and time. OJD is not responsible for technical problems."

The State cannot rely on a notification system that the OJD itself characterizes as supplemental, non-official, and not a substitute for formal notice — particularly when the system's ability to reach Defendant was compromised by an unauthorized change to her contact information made by a state actor.

B. The Notice Failure Was State-Caused, Not Defendant's Neglect

Courts generally treat notice as effective if sent to the last address provided by the defendant. But that principle presupposes that the defendant controls her own contact information. Here, a criminal justice employee modified Defendant's contact information without her knowledge or consent. The State cannot cause a notice failure and then rely on that failure to proceed in Defendant's absence.

This is not a case where Defendant moved and failed to update her address. This is a case where the State changed her information and then claimed it could not reach her. The distinction is constitutionally significant. When the government itself disrupts the notice process, the resulting deprivation of the right to be heard cannot be attributed to the defendant. See Peralta v. Heights Medical Center, Inc., 485 U.S. 80, 84 (1988) (holding that a judgment entered without adequate notice violates due process and must be set aside, regardless of whether the defendant had a meritorious defense).

C. The History of Notice and Filing Failures Compounds the Violation

The February 9 notice failure does not exist in isolation. The record reflects a pattern of state-caused processing failures in this case:

The Motion to Quash Warrant, filed July 1, 2025, was not processed for over six months. The court's explanation — that the filing was "misrouted" — is contradicted by Defendant's contemporaneous communication with court staff about the motion.

Defendant's demurrer, filed prior to the converted omnibus hearing and before any substantive motion had been decided, has received no ruling to this day. Defendant preserved the right to challenge the charging instrument at both arraignments. The demurrer was timely. It has been ignored.

Defendant's prior counsel's motion to dismiss and suppress — which documented contradictions in the arresting officer's sworn statements — was denied without a hearing, without oral argument, without the State filing any response, and after this Court stated on the record on April 29, 2025 that it would "not [be] making a decision today about anything." The Court subsequently made that decision — in Defendant's absence, without counsel, and without any proceeding at which arguments could be heard.

The Court's own mail for the show cause hearing related to the bond revocation was returned undelivered. The Court proceeded anyway, and Defendant was charged with failure to appear — for a hearing she did not know was taking place.

Each of these failures, individually, raises procedural concerns. Together, they establish a pattern: Defendant's filings go unprocessed, her contact information is modified without authorization, her motions are ignored or denied without hearing, and the Court proceeds in her absence when notice fails — then uses her absence to impose further consequences.

D. The Court's Duty to Process Filings

Under ORS 8.225, the trial court administrator is required to "maintain the records, files, books and other documents pertaining to the court" and to "file all documents delivered for filing in any action, suit or proceeding." This is a nondiscretionary ministerial duty. When a pro se defendant files a motion, the TCA must file it, route it to the appropriate judge, and process it through the court's calendaring system. A filing that sits unprocessed for seven months has not been "filed" in any meaningful sense.

Under UTCR 4.010, pretrial motions in criminal cases are subject to specific processing timelines. The opposing party must respond within the time prescribed by rule. The court must either set a hearing or rule on the papers. A motion that is neither calendared nor ruled upon for over six months — while the defendant remains on the unrepresented list — violates both the letter and purpose of these rules.

Defendant does not suggest that every administrative delay constitutes a constitutional violation. But when the delay is combined with (a) a pending warrant for Defendant's arrest, (b) 286 days without counsel, (c) an unauthorized change to Defendant's contact information, and (d) a subsequent hearing held in Defendant's absence without adequate notice, the aggregate effect is a deprivation of Defendant's right to access the courts. Article I, Section 10 of the Oregon Constitution provides: "No court shall be secret, but justice shall be administered, openly and without purchase, completely and without denial, promptly and without delay."

E. Holding the Hearing in Defendant's Absence Violated Due Process

Defendant requested telephonic appearance in her original motion. The Presiding Judge's standing orders for Washington County Circuit Court authorize remote appearances. The Court initially acknowledged this request. The Court then denied telephonic appearance for the February 9 hearing without explanation — despite the well-documented history of notice failures, despite the unauthorized change to Defendant's contact information, and despite Defendant's attempts to reach the court on the day of the hearing.

Proceeding with an adverse hearing on a defendant's own motion — while the defendant is absent, unrepresented, and has not received actual notice — does not satisfy the requirements of due process. The right to be present and heard is not a procedural nicety. It is the foundation of the adversarial system. Defendant was deprived of the opportunity to present the arguments contained in her supplemental memorandum, to respond to the State's position, and to be heard on the constitutional issues that form the core of this case.

III. DISMISSAL WITH PREJUDICE IS REQUIRED UNDER STATE v. ROBERTS

A. The Right to Counsel Has Been Violated for 286 Days

The Oregon Supreme Court in State v. Roberts, ___ Or. ___ (Feb. 4, 2026), held that criminal charges must be dismissed when the State fails to appoint counsel within constitutionally required timeframes. The Court recognized that Article I, Section 11 of the Oregon Constitution guarantees the right to counsel, and that this right is enforceable through dismissal.

Defendant was placed on the unrepresented list on April 29, 2025, following the withdrawal of her second appointed counsel. As of the date of this filing, 286 days have elapsed — 196 days beyond the outer constitutional limit established in Roberts for felony cases.

Although the Oregon Public Defense Commission has reflected a recent appointment in its administrative records, OPDC confirmed to Defendant that this designation is administrative record-keeping only and does not indicate that counsel has entered an appearance or been assigned to represent Defendant.

During the 286 days without counsel: a warrant issued for Defendant's arrest; bail was revoked based on unlawfully obtained evidence and a non-existent release condition; a failure to appear charge was added based on a hearing at which Defendant received no notice; Defendant's prior counsel's motion to dismiss was denied without hearing; Defendant's demurrer has gone unruled; Defendant's Motion to Quash sat unprocessed for seven months; and the February 9 hearing was held in Defendant's absence. Defendant has been unable to secure stable housing and employment for herself and her three children because of the outstanding warrant.

B. The Failure to Appear Does Not Disqualify Defendant from the Roberts Remedy

The failure to appear arose from a show cause hearing for which the Court's own notice was returned undelivered. Defendant was unrepresented. She had a pending Motion to Quash before the Court. She had communicated with court staff about the resending of notice. Her contact information was subsequently changed without authorization by criminal justice staff.

A failure to appear caused by the State's own administrative errors — unauthorized alteration of contact information, returned mail, undelivered notifications through a system the OJD itself characterizes as supplemental — cannot serve as the basis to deny the constitutional remedy Roberts requires. The purpose of Roberts is to address systemic failures in the provision of counsel. Permitting the State to circumvent that remedy by pointing to a failure to appear caused by the court's own process failures would render Roberts a nullity.

C. Prejudice Is Documented, Not Presumed

The prejudice here need not be presumed because it is established by the record:

Substantive motions were decided adversely to Defendant while she was without counsel. This Court denied Defendant's prior counsel's motion to dismiss — a motion that raised the misidentification, contradictory sworn statements, and the fruit of the poisonous tree doctrine — without any hearing, without oral argument, without the State having responded, and after stating on the record that it would not decide anything while Defendant was without counsel.

Access to the courts has been obstructed. The Motion to Quash sat unprocessed for seven months. The demurrer has been ignored. The February 9 hearing was held without Defendant. Contact information was changed without her authorization.

The State has continued to take adverse action. Bail revoked. Warrant issued. FTA charge added. A hearing held in absence. Each action occurred while Defendant was on the unrepresented list.

Defendant is in an impossible position: she cannot get counsel appointed, and she cannot advocate for herself. The Court told Defendant on April 29, 2025 that she should raise her arguments when counsel is appointed. Counsel has not been appointed. Meanwhile, the Court has denied motions, ignored filings, issued warrants, held hearings in Defendant's absence, and revoked bail.

D. Dismissal With Prejudice Is the Only Adequate Remedy

Dismissal without prejudice would allow the State to refile and continue to benefit from every constitutional violation documented in this case. The State would retain: the indictment obtained through false grand jury testimony; the evidence manufactured after the acknowledged misidentification; the booking photograph obtained from an unlawful arrest; and the information derived from the warrantless entry into Defendant's home.

What follows is a documented account of the conduct that makes dismissal with prejudice the only constitutionally adequate remedy.

IV. THE CASE BEGAN WITH A MISIDENTIFICATION AND EVERY EVENT THAT FOLLOWED IS TAINTED

A. The September 18, 2024 Arrest: No Probable Cause

On September 18, 2024, at approximately 9:18 PM, Defendant exited a Target store in Washington County. Officers arrested her within approximately three minutes — handcuffs, back of the patrol car — before conducting any investigation inside the store.

Officer Rambin's first words to Defendant upon arrest were: "You were here yesterday." Defendant was not. Officer Rambin had reviewed surveillance footage from the prior day's theft approximately three hours before Defendant arrived. He believed Defendant was the woman in that footage. He was wrong.

Officer Stone's report confirms that upon his arrival — while Defendant was still inside the store — Deputy Orozco informed him that "two suspects were currently being monitored" and that "the suspects had already tampered with the security device on a vacuum cleaner." Stone further states that upon arrival, "Deputy Rambin advised me that he had probable cause to arrest Ashle at that point."

Rambin communicated to fellow officers that he possessed probable cause before Defendant exited the store — before any investigation of that evening's activity, before any review of surveillance, and before any determination of whether Defendant had committed a criminal act. The only basis was the prior day's theft — committed by someone else.

The probable cause affidavit for warrantless arrest confirms this: Rambin stated Defendant was at the store the day before and had stolen a specified amount. This sworn statement is contradicted by his own supplemental report acknowledging the misidentification.

The Sarah Fillis play-by-play — the minute-by-minute account of Defendant's time in the store — contains no mention of any security tag being removed. The total video evidence submitted into discovery accounts for thirteen minutes and four seconds of a thirty-five minute period, leaving twenty-two minutes and twenty-six seconds unaccounted for. No video depicts Defendant engaging in any criminal activity.

After the arrest, Officer Orozco took Defendant's reusable shopping bag back into Target. Body-worn camera footage shows Sarah Fillis removing items from Defendant's bag and scanning them at the customer service counter — returning items to the bag after finding they did not scan in Target's system because they were Defendant's own property. Officer Orozco removed two exfoliator jars and identified them as "the candles you were talking about." They were not candles. They were exfoliators purchased from Safeway. Defendant never approached the candle section during her time in the store. Fillis herself returned items to the bag and stated: "this is not ours."

The officers investigated after the arrest, not before it. What they knew at the moment of arrest — and only what they knew at that moment — defines the probable cause inquiry. What they knew was a false belief that Defendant was someone she was not. That is not probable cause.

B. The Contact Chain: Fillis to Orozco to Rambin — Contradicted at Every Turn

Sarah Fillis contacted Officer Orozco to report that "the girl from the night before" was back. Orozco contacted Rambin. Yet Orozco's contemporaneous report contains no mention of Fillis contacting him. Rambin's probable cause affidavit implies Fillis contacted him directly. Rambin's grand jury testimony — as documented in Defendant's prior counsel's motion to dismiss — states he was contacted by Kinley Baker, a different LP officer who was not present the night of the arrest. Body-worn camera footage from Rambin's arrival at Target to pick up the prior day's footage shows Baker was not present — Fillis provided the footage.

Three sworn or official accounts from the same officer and his colleagues. Each contradicts the other. The State was in possession of all three.

C. Post-Arrest Manufacturing of Evidence

After Rambin acknowledged in a supplemental report that Defendant was not the person he arrested her for, he returned to Target on December 27, 2024 and directed Target personnel to compile all security footage of Defendant from prior visits. This is evidence manufacturing after acknowledged innocence. See Spencer v. Krause, 2021 WL 4480872 (D. Or. 2021); Devereaux v. Abbey, 263 F.3d 1070, 1074-75 (9th Cir. 2001) (en banc). See also Abercrombie v. Beam, 2023 WL 2206057 (D. Or. 2023) (recognizing a constitutional right to adequate pre-arrest investigation).

Rambin identifies Travis Gower — described as an "intelligence analyst" with the Washington County Sheriff's Office — as the individual who contacted him on either October 1 or October 9, 2024 (Rambin uses both dates in different reports) to "connect" Defendant to other incidents using her booking photograph. Gower's DPSST certification expired in 2020 and has not been renewed. Although civilian employees may access certain systems, the investigatory actions attributed to Gower — analyzing booking photographs, connecting an individual to uncharged incidents, conveying findings to a sworn officer for the purpose of building a criminal case — are restricted to certified personnel. The State has identified no other individual who conducted this investigation and has not explained how Gower came into possession of Defendant's booking photograph independent of the unlawful arrest.

Every piece of evidence connecting Defendant to the incidents now charged in the indictment traces back to one source: the booking photograph obtained when Defendant was arrested for being someone she was not.

D. The Grand Jury: False Testimony

Defendant demanded a preliminary hearing in open court on October 11, 2024. Her second counsel filed a written motion for preliminary hearing on December 24, 2024. Instead of providing the hearing, the State took the case to a grand jury on January 14, 2025.

At grand jury, the testifying witness told jurors that officers were at Target for an "unrelated matter." This is directly contradicted by Rambin's probable cause affidavit, which states officers were at Target because they believed Defendant was the woman from the prior day's theft. The State possessed both statements. The prosecutor who conducted the grand jury later discovered text messages in February 2025 — between LP personnel and officers — confirming officers were there for Defendant. These messages were not presented to the grand jury and no corrective action was taken after their discovery.

Rambin's grand jury testimony stated he was contacted by Kinley Baker on the night of the arrest. Body-worn camera footage contradicts this. Fillis provided the footage and contacted Orozco. Baker was not present. This is a third version of events, given under oath, each contradicting the others. The State's awareness of the contradictory affidavit at the time of the grand jury, combined with its failure to correct false testimony, raises concerns under ORS 162.295 and the prosecutor's obligations under Oregon RPC 3.3(a) and 3.8.

The State conspicuously did not present to the grand jury any evidence surrounding the original arrest — the misidentification, the prior day's theft amounts, or Rambin's admission that Defendant was not the suspect. Instead, the State presented only the derivative evidence — the incidents connected through the booking photograph. This was a deliberate effort to sever the chain between the unlawful arrest and the charges now maintained.

E. The Unlawful Entry on May 10, 2025

On May 10, 2025, deputies responded to a call at Defendant's residence. Upon arrival, Defendant informed officers she no longer required their assistance and asked them to leave. Officers then stated that her partner, Barry Washington, had a "felony warrant."

Defendant did not consent to entry. She stepped outside, closed and locked her door each time she went back inside. When she returned outside to inform officers Mr. Washington appeared to have left, officers entered the residence.

The State's own filings in the related contempt case (25CN02140) reveal:

Defense counsel Jake Brugger stated in his July 3, 2025 motion to suppress: "the WCCC warrant was entered into the Law Enforcement Data System (LEDS), but no written or signed warrant was prepared or issued."

The State, through DDA Jade Sawyer, responded on July 22, 2025 by producing for the first time a "Warrant Authorization and Suspension Order" signed by a "Supervising Authority / Designee" — not a judge, not a magistrate. This document materialized approximately seventy-five days after defense counsel stated under oath that none existed.

DDA Sawyer's brief alternates between calling the document an "arrest order" (in the Statement of Facts: "Deputy King notified Ms. Penn about the arrest order"; "Deputy King verified the active arrest order") and an "arrest warrant" (in the Argument: "lawfully conducted under a valid arrest warrant"). This alternation within a single filing reflects the State's awareness that the legal distinction determines constitutionality.

Sawyer herself acknowledged the critical distinction: "Although Article I, Section 9 of the Oregon Constitution requires that warrants be supported by 'probable cause'… in the context of PPS violations, the statute establishes a specific statutory framework based on 'reasonable grounds.' ORS 144.350(1)." The State thus concedes the administrative order rests on "reasonable grounds" — less than probable cause — and not the probable cause required for home entry.

Under Payton v. New York, 445 U.S. 573, 586 (1980), entry into a home requires a judicial warrant supported by probable cause. An administrative supervisory order based on reasonable grounds does not satisfy this requirement. See also State v. Meharry, 342 Or. 173, 177 (2006).

Officers told Defendant Mr. Washington had a "felony warrant." The document the State produced is an administrative supervisory order signed by Kenneth Rolfe, who was laid off by the agency on or about May 27, 2025. Efforts to subpoena Mr. Rolfe in the contempt case have been met with resistance. The effective date of the document is November 26, 2024. It was not produced until approximately seventy-five days after its existence was denied.

DDA Sawyer admitted that deputies did not know about the no-contact condition at the time of entry: "Unknown to the deputies at the time of Mr. Washington's arrest, Mr. Washington was subject to an active release agreement which ordered that Mr. Washington was to have 'no contact with co-defendant Ashle Penn.'" The entry was not to enforce a no-contact order. The contempt charge was manufactured after the fact.

DDA Sawyer is no longer employed by the Washington County District Attorney's Office.

F. The Rambin Identification — Conflict of Interest

Two days after the entry, DDA Sawyer asked Deputy David Rambin — the same officer who misidentified Defendant in September 2024 — to "confirm" whether Mr. Washington and Ms. Penn were the parties involved. Rambin confirmed based on a review of other officers' reports and the fact that Defendant's name was "run" during the May 10 incident. He did not review body-worn camera footage.

Asking the officer whose identification error initiated this entire sequence to make yet another identification — this time from reports, not personal observation — is circular. This officer has a direct interest in seeing the prosecution maintained because the alternative is accountability for the misidentification that started it. His conclusion that contact "appeared" to have occurred does not constitute reliable evidence sufficient to support bail revocation. See State v. Sargent, 110 Or. App. 194 (1991).

G. Release Conditions Were Not Reimposed

When Defendant was re-arraigned on the indictment in February 2025, the Court did not reimpose the no-contact condition. Release conditions do not automatically transfer from a DA's information to an indictment. They must be explicitly stated. ORS 135.230 et seq. Defendant was in the community. No discussion of release conditions occurred. A condition that was not imposed cannot be violated. A bail revocation predicated on a non-existent condition is void.

Defendant and Mr. Washington are not co-defendants. They were arrested the same night but never charged together. They have separate case numbers. The release agreement's reference to "co-defendant" is a mischaracterization the State has exploited.

H. The Bond Revocation: No Notice, No Counsel

The Court revoked Defendant's bond after receiving return mail for a show cause hearing. The hearing was held while Defendant was unrepresented and without actual notice. Defendant was charged with failure to appear — for a hearing she did not know was occurring, for

which the Court's own mail was returned, while she was without counsel and had a pending motion before the Court.

V. THE RECORD OF THE APRIL 29, 2025 HEARING

This motion is filed in front of the same judge who presided over the April 29, 2025 hearing. The transcript of that hearing — attached hereto as Exhibit A — reflects the following exchange, quoted verbatim:

Ms. Lasher stated on the record that she was withdrawing based on a mandatory conflict under RPC 1.7, citing "a personal interest of the lawyer." The Court held an off-the-record, in-chambers conference with Ms. Lasher alone — excluding both Defendant and the State. Upon returning, the Court granted the withdrawal.

The Court warned Defendant: "You're now moving on to your third lawyer. There will not be a fourth." Defendant responded: "Your honor, I believe that the court just told me that this was a conflict of interest due to Ms. Lasher's independent position. That doesn't have anything to do with me."

The Court stated: "You don't need to understand because you obviously don't agree with the problem in the first place." Defendant stated: "I don't understand what the problem is. You said that this was a personal issue for Ms. Lasher."

The Court then stated: "This is your second lawyer and the first lawyer as, my understanding, went through similar situations." The interaction with Defendant's first attorney occurred in Judge Colburn's chambers — not before this Court and not on the record. Defendant did not waive attorney-client confidentiality.

Defendant responded: "When she wouldn't argue for me that I was misidentified and I was correct."

The Court stated: "That doesn't matter."

Defendant stated: "It absolutely matters, Your Honor."

The Court stated: "No, Ms. Penn, I already pulled the cases on this. And I'm telling you the law is not in your favor."

The Court stated: "We're done. We're not arguing about this today."

Defendant stated: "Your honor, for the record, I'm here to preserve the record. I'm not here to argue with you."

The Court stated: "There's no record to preserve. I'm not making a decision today about anything."

The Court stated: "If there is another conflict with a lawyer. You can hire a lawyer. You'll be representing yourself, and you will not have a third court appointed lawyer."

The Court stated: "You don't understand that your first lawyer didn't do what you wanted and that created a conflict." Defendant objected: "No, that's not correct. I object, your honor." The Court stated: "And you don't get to object now. Those are the facts that are the record."

Defendant stated: "I do believe that I have a right to be heard." The Court stated: "You have the right to be heard." Defendant stated: "Then I would like to be heard." The Court stated: "We're getting you another lawyer."

The record of this hearing establishes the following:

The Court characterized both attorney withdrawals as Defendant's fault — when Ms. Lasher stated on the record that her withdrawal was based on a personal conflict under RPC 1.7. The Court's characterization is contradicted by the transcript of the hearing at which it was made.

The Court referenced information from Judge Colburn's chambers that is not part of any record before this Court. No waiver of attorney-client confidentiality was obtained.

The Court stated it had "already pulled the cases" and the "law is not in your favor" — before any substantive hearing, before any evidence was presented, before any motions were argued. The omnibus hearing at which those motions were to be argued was the hearing that was converted to a withdrawal hearing. No substantive motions have been argued before this Court to this day.

The Court stated it was "not making a decision today about anything" and that there was "no record to preserve." The Court subsequently denied Defendant's prior counsel's motion to dismiss — approximately two months later — without a hearing, without oral argument, without the State having filed any response, and without an omnibus hearing.

VI. THE CONSTELLATION OF VIOLATIONS REQUIRES DISMISSAL WITH PREJUDICE

Defendant does not ask this Court to accept her characterization of the State's conduct. She asks the Court to examine the record — the documents, the transcript, the officer's own reports — and to recognize what the record establishes:

A misidentification that the arresting officer acknowledged in writing. Evidence manufactured after that acknowledgment. An uncertified individual conducting investigations using a booking photograph from the unlawful arrest. False testimony at grand jury contradicting the arresting officer's own sworn affidavit. Text messages discovered after grand jury confirming the false testimony, with no corrective action. Circumvention of a demanded preliminary hearing. An unlawful warrantless entry into Defendant's home. A document purporting to authorize that entry that materialized seventy-five days after defense counsel stated under oath it did not exist, signed by an individual subsequently laid off, with efforts to subpoena that individual resisted. The same misidentifying officer called upon to confirm Defendant's identity for a new charge. Bail revoked on a condition never reimposed. A failure to appear charge based on a hearing held without actual notice. A demurrer that has received no ruling. A motion to quash that sat unprocessed for seven months. A February 9 hearing held in Defendant's absence after her contact information was changed without authorization. 286 days without counsel. And a Court that stated, before hearing any evidence or argument, that the misidentification "doesn't matter" and the "law is not in your favor."

The Due Process Clause prohibits government conduct that "shocks the conscience." Rochin v. California, 342 U.S. 165, 172 (1952); State v. Lively, 321 Or. 1, 14 (1995). The exclusionary rule exists to deter precisely this kind of conduct. United States v. Calandra, 414 U.S. 338, 347 (1974). The Constitution's protection of the home is at its zenith when officers enter without a judicial warrant. Payton, 445 U.S. at 586. The right to counsel is not aspirational — it is enforceable through dismissal. Roberts, ___ Or. ___ (2026). And the right to access the courts means nothing if a defendant's filings are ignored, her contact information is changed without authorization, and hearings proceed in her absence.

Dismissal without prejudice would permit the State to refile and to continue benefiting from every one of these violations. It would allow the retention of manufactured evidence, the use of a booking photograph from an unlawful arrest, and reliance on an indictment procured through false testimony. The misidentification would remain unaddressed. The 286 days without counsel would carry no consequence. The pattern would continue.

Defendant has maintained pristine records throughout these proceedings. She has recorded all hearings and telephone calls to protect herself and to ensure the accuracy of the factual representations in this filing. She is prepared to provide these recordings to the Court upon request, and offers YouTube links to the audio of hearings and calls referenced herein so that the Court can verify every statement attributed to any speaker in this motion.

VII. PRESERVATION OF MANDAMUS AND APPELLATE RIGHTS

Should this Court decline to grant the relief requested herein, Defendant respectfully preserves her right to seek extraordinary relief through a Petition for Alternative Writ of Mandamus pursuant to ORS 34.110 et seq., directed to:

The trial court administrator, for the failure to process Defendant's filings in accordance with ORS 8.225 and UTCR requirements — including the seven-month delay in processing the Motion to Quash, the failure to calendar or rule upon the demurrer, and the failure to respond to records requests;

The Court, for the failure to rule on the demurrer, the failure to provide an omnibus hearing, and the denial of substantive motions without hearing while Defendant was without counsel — duties that are nondiscretionary once a motion is properly filed and ripe for decision.

Mandamus lies when a tribunal has a clear legal duty to act and has refused or failed to do so. ORS 34.110. It is unavailable to control judicial discretion, but it is available to compel the performance of ministerial and nondiscretionary duties. Processing filed motions, calendaring hearings, ruling on ripe motions, and providing access to court records are nondiscretionary. Their non-performance is subject to mandamus.

Defendant further preserves all issues raised in this filing and in her prior filings for direct appellate review following final judgment, including but not limited to: the denial of her right to counsel under Article I, Section 11; the denial of her preliminary hearing demand; the suppression of evidence derived from the unlawful arrest and unlawful home entry; the sufficiency of the probable cause for arrest; the propriety of the grand jury proceedings; the denial of the motion to dismiss without hearing; the failure to rule on the demurrer; and the proceedings held in her absence without adequate notice.

VIII. RELIEF REQUESTED

Defendant respectfully moves this Court to:

(a) Set aside any ruling entered on February 9, 2026, on the ground that Defendant did not receive constitutionally adequate notice and was deprived of her right to be present and heard;

(b) Dismiss the indictment with prejudice pursuant to State v. Roberts, ___ Or. ___ (Feb. 4, 2026), and Article I, Section 11 of the Oregon Constitution, based on the 286-day denial of counsel;

(c) Dismiss the indictment with prejudice on the independent ground of outrageous government misconduct;

(d) Suppress all evidence derived from the unlawful September 18, 2024 arrest, including but not limited to the booking photograph and all evidence obtained through its use;

(e) Suppress all evidence derived from the unlawful May 10, 2025 entry into Defendant's home;

(f) Quash the outstanding warrant;

(g) Strike the no-contact condition that was never reimposed at re-arraignment on the indictment;

(h) Dismiss the failure to appear charge;

(i) In the alternative, reinstate bail with only constitutionally permissible conditions, set an evidentiary hearing on the probable cause for the original arrest, and schedule the long-overdue omnibus hearing.

Defendant requests oral argument on this motion. Defendant requests the opportunity to appear telephonically or remotely, consistent with the Presiding Judge's standing orders authorizing remote appearances in Washington County Circuit Court.

DATED this ___ day of February, 2026.

Respectfully submitted,

Ashle' Penn
Defendant, Pro Se

CERTIFICATE OF SERVICE

I hereby certify that on the date set forth above, I served a true copy of the foregoing Motion to Set Aside the February 9, 2026 Proceeding, Motion for Dismissal with Prejudice, and Memorandum in Support upon the Washington County District Attorney's Office by [method of service].

Ashle' Penn

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF OREGON
PORTLAND DIVISION

ASH LE' PENN,

Plaintiff,

v.

Case No. _____

WASHINGTON COUNTY, a political subdivision of the State of Oregon; DEPUTY DAVID RAMBIN, individually and in his official capacity; DEPUTY AUGUSTO OROZCO, individually and in his official capacity; DEPUTY STONE, individually and in his official capacity; SARAH FILLIS, individually; KINLEY BAKER, individually; TARGET CORPORATION, a Minnesota corporation; TRAVIS GOWER, individually; and DOES 1-10,

Defendants.

COMPLAINT FOR DAMAGES AND DECLARATORY RELIEF UNDER 42 U.S.C. § 1983, 42 U.S.C. § 1985(3), AND STATE LAW

JURY TRIAL DEMANDED

PRELIMINARY STATEMENT

1. This action arises from the racially motivated misidentification, unlawful arrest, fabrication of evidence, presentation of perjured testimony to a grand jury, unlawful entry into a private home, and continuing malicious prosecution of Plaintiff Ash Le' Penn — a Black woman who was arrested on September 18, 2024, because law enforcement officers mistook her for a different Black woman who had committed a theft the day before. The arresting officer later admitted in a sworn supplemental report that Plaintiff was not the person he believed her to be. Rather than dismiss the case, the State directed a private corporation to manufacture evidence, presented contradictory sworn testimony to a grand jury, and continues to prosecute Plaintiff using evidence derived exclusively from the unlawful arrest — the very definition of fruit of the poisonous tree.
2. Plaintiff brings this action under 42 U.S.C. § 1983 for violations of her rights under the Fourth and Fourteenth Amendments to the United States Constitution; under 42 U.S.C. § 1985(3) for conspiracy to deprive her of equal protection of the laws; and under Oregon state law for false arrest, malicious prosecution, intentional infliction of emotional distress, and civil conspiracy.
3. Plaintiff seeks compensatory damages, punitive damages, declaratory relief, and injunctive relief.

JURISDICTION AND VENUE

4. This Court has original jurisdiction under 28 U.S.C. § 1331 (federal question) and 28 U.S.C. § 1343(a)(3) and (4) (civil rights). This Court

has supplemental jurisdiction over state-law claims under 28 U.S.C. § 1367.

5. Venue is proper in this District under 28 U.S.C. § 1391(b) because all events giving rise to this action occurred in Washington County, Oregon, which lies within this District.

PARTIES

6. Plaintiff ASH LE' PENN is a natural person and resident of Washington County, Oregon. She is a Black woman and a mother of three children.
7. Defendant WASHINGTON COUNTY is a political subdivision of the State of Oregon that operates the Washington County Sheriff's Office ('WCSO') and is responsible for the policies, customs, and practices of its law enforcement officers. Washington County is sued under Monell v. Department of Social Services, 436 U.S. 658 (1978).
8. Defendant DEPUTY DAVID RAMBIN is a sworn law enforcement officer employed by WCSO, DPSST No. 53879. Deputy Rambin was the arresting officer on September 18, 2024, and is the officer who subsequently admitted in a supplemental report that Plaintiff was not the person he believed her to be. He is sued in his individual and official capacities.
9. Defendant DEPUTY AUGUSTO OROZCO is a sworn law enforcement officer employed by WCSO. Deputy Orozco was present at the scene on September 18, 2024, and received the initial communication from Target loss prevention personnel identifying Plaintiff as the suspect from the prior day. He is sued in his individual and official capacities.
10. Defendant DEPUTY STONE is a sworn law enforcement officer employed by WCSO. Deputy Stone was present at the scene on September 18, 2024, and was informed by Deputy Rambin prior to Plaintiff's exit from the store that Rambin 'had probable cause to arrest' Plaintiff based on the prior day's theft. He is sued in his individual and official capacities.
11. Defendant SARAH FILLIS is an individual who was employed by Target Corporation as a Security Specialist (Loss Prevention) at the Target store located at 12675 NW Cornell Rd, Portland, Oregon 97229. Fillis initiated the contact with law enforcement that led to Plaintiff's arrest and subsequently participated in the post-arrest manufacture of evidence at the direction of law enforcement.
12. Defendant KINLEY BAKER is an individual who was employed by Target Corporation as a Loss Prevention officer. Baker was not present at the store on the night of Plaintiff's arrest but subsequently provided sworn testimony to the grand jury on January 14, 2025, in which she stated that officers were present at Target for an 'unrelated matter' — a statement contradicted by the State's own records.
13. Defendant TARGET CORPORATION is a Minnesota corporation doing business in Oregon. Target, through its employees Fillis and Baker, participated in the identification, arrest, and subsequent manufacture of evidence against Plaintiff.
14. Defendant TRAVIS GOWER is an individual who was identified by Deputy Rambin as an 'intelligence analyst' for the Washington County Sheriff's Office. Gower's DPSST certification expired in 2020 and has not been renewed. Gower is alleged to have used Plaintiff's booking photograph — obtained as a direct result of the unlawful arrest — to connect Plaintiff to prior incidents at Target, thereby manufacturing the evidentiary basis for the continuing prosecution.
15. Defendants DOES 1-10 are individuals and entities whose identities are presently unknown to Plaintiff but who participated in the acts and omissions described herein.

FACTUAL ALLEGATIONS

A. The Misidentification and Unlawful Arrest — September 18, 2024

16. On September 17, 2024, an unidentified Black female entered the Target store at 12675 NW Cornell Rd, Portland, Oregon, and left the store without paying for approximately $895.84 in merchandise. Plaintiff was not this individual.
17. On September 18, 2024, Deputy Rambin was dispatched to the same Target store to investigate the September 17 theft. He arrived at the store and obtained a thumb drive containing surveillance footage and a loss prevention report from Defendant Fillis. He then left the store. This occurred approximately three hours before Plaintiff entered the store.
18. At approximately 9:04 PM on September 18, 2024, Plaintiff entered the Target store. According to Fillis's own contemporaneous report, Plaintiff carried a small black crossbody purse, a pink and blue striped canvas tote, and a paper Target bag. Plaintiff selected a cart and proceeded to shop.
19. Between approximately 9:04 PM and 9:06 PM, Defendant Fillis contacted Defendant Orozco and informed him that the theft suspect from the night before had returned to the store. This identification was false. Fillis erroneously concluded that Plaintiff was the individual who had stolen from Target on September 17. Plaintiff was not that individual.
20. Critically, Defendant Orozco's contemporaneous report contains no mention of having been contacted by Fillis. The contact between Fillis and Orozco is documented only in text messages that did not surface until February 2025 — after the January 14, 2025 grand jury proceeding.
21. Defendant Orozco contacted Defendant Rambin and informed him that 'the girl from the night before is back.' Rambin, who was close to the Target location, arrived at approximately 9:16 PM — while Plaintiff was still inside the store shopping.
22. Defendant Stone was dispatched at approximately 9:15 PM and arrived at approximately 9:37 PM. In his report, Stone states: 'Deputy Orozco informed me prior to arrival that two suspects were currently being monitored in the store. I was advised that the suspects had already tampered with the security device on a vacuum cleaner.' Stone further states: 'When I arrived on scene, I met up with Deputy Rambin who was waiting near the main entrance/exit. Deputy Rambin advised me that he had probable cause to arrest Ashle at that point.'
23. The 'probable cause' Rambin communicated to Stone was based solely on his false belief that Plaintiff was the individual who had committed the September 17 theft. At the time Rambin made this statement, Plaintiff was still inside the store. No investigation had been conducted. No surveillance footage had been reviewed to confirm Plaintiff's identity. No criminal activity by Plaintiff had been observed.
24. At approximately 9:37 PM, Plaintiff exited the store. She was immediately arrested. Officers told her to drop her belongings, placed her in handcuffs, and placed her in a patrol vehicle within approximately three minutes.
25. Upon arresting Plaintiff, Deputy Rambin stated to her: 'You were here yesterday.' Plaintiff responded: 'No, I wasn't.'
26. Only after Plaintiff's arrest did officers re-enter the store to conduct an investigation. The investigation did not reveal the evidence officers expected. Rambin directed Fillis to locate a spider wrap that was allegedly removed from a vacuum. No video evidence of any criminal activity by Plaintiff was found.
27. Fillis's own contemporaneous activity report — documenting Plaintiff's movements from 9:03 PM to 9:39 PM — contains no mention of the removal of a security tag or any other criminal act by Plaintiff.
28. After Plaintiff's arrest, Defendant Orozco took Plaintiff's reusable shopping bag back into the store, where Fillis was observed on body-worn camera footage removing items from the bag and scanning them at the customer service counter. Fillis had to return many items to the bag after discovering they did not register in Target's system — because they were Plaintiff's personal property that she had not taken from Target. Orozco removed two exfoliator jars and stated, 'There's the candles you were talking about.' They were not candles. They were exfoliators that Plaintiff had purchased from Safeway. Fillis subsequently returned items to the bag and stated, 'This is not ours.'
29. The total video evidence submitted by the State into discovery covers only 13 minutes and 4 seconds of a 35-minute-and-30-second period — leaving 22 minutes and 26 seconds (approximately 63%) unaccounted for.

B. The Probable Cause Affidavit — Contradicted by the State's Own Record

30. In his Affidavit in Support of Probable Cause for Warrantless Arrest, Deputy Rambin swore under oath that he was dispatched to Target 'due to Sarah Fillis, who I know to be a loss prevention agent for Target, reporting a theft.' He further swore that 'Sarah stated that a black female adult had entered the store and after selecting multiple items, left the store through a fire exit without paying for the items on September 17, 2024' and that 'the value of the items stolen was $895.84.'
31. This affidavit establishes that the sole basis for Plaintiff's arrest was the false belief that she was the individual who committed the September 17 theft. The affidavit does not describe any criminal conduct observed on September 18. It does not describe any investigation conducted prior to arrest. It describes only the September 17 theft — a theft Plaintiff did not commit.
32. No signed order of probable cause from a magistrate has been produced. Only a blank, unsigned probable cause order appears in the discovery materials.

C. The Admitted Misidentification and Evidence Manufacturing — October Through December 2024

33. On or about October 1 or October 9, 2024 (Rambin uses both dates in different reports), Rambin claims he was contacted by Travis Gower, whom he identifies as an 'intelligence analyst' for the Washington County Sheriff's Office. Gower allegedly used Plaintiff's booking photograph — obtained as a direct result of the September 18 arrest — to connect Plaintiff to prior incidents at Target.
34. Gower's DPSST certification expired in 2020 and has not been renewed. Although civilian employees may have access to certain information, the investigatory actions attributed to Gower — using booking photographs to identify and connect a suspect to multiple criminal incidents — are investigatory functions restricted to certified law enforcement officers under Oregon law.
35. On October 11, 2024, Plaintiff appeared in court for a change of plea hearing. She informed the court that she would not be changing her plea and that she maintained her absolute innocence. She demanded a preliminary hearing in open court. The court took no action on this demand.
36. On December 8, 2024, a warrant was allegedly issued for Plaintiff's arrest. Plaintiff has never been served with or informed of this warrant. Plaintiff had multiple court appearances between October 11, 2024, and January 14, 2025, and no mention of any warrant was made at any of these appearances.
37. On December 27, 2024, Deputy Rambin placed a supplemental report in which he admitted that Plaintiff was not the person he believed her to be at the time of arrest. In the same time frame, Rambin returned to Target and directed Target personnel to compile all security footage of Plaintiff from prior visits to the store. This directive was issued after Rambin's written admission that Plaintiff had been misidentified.
38. The post-misidentification directive to Target to compile footage constitutes the manufacture of evidence. See Spencer v. Krause, 2024 WL 3520329 (D. Or. 2024) (holding that continued investigative efforts after officers knew or should have known of a suspect's innocence may violate the Constitution); see also Devereaux v. Abbey, 263 F.3d 1070, 1074-75 (9th Cir. 2001) (en banc) (recognizing a § 1983 claim for deliberate fabrication of evidence).

D. The Grand Jury — Perjured Testimony and Prosecutorial Misconduct — January 14, 2025

39. On January 14, 2025, the State took the case to a grand jury — without ever providing Plaintiff the preliminary hearing she had demanded in open court on October 11, 2024.
40. At the grand jury, the State presented the testimony of Deputy Rambin and Kinley Baker. Baker — who was not present at Target on the night of September 18, 2024 — testified that officers were present at Target for an 'unrelated matter.'
41. This testimony was false. Officers were present at Target specifically because Fillis had contacted Orozco to report that the suspect from the prior day had returned. The officers' own reports confirm this. Deputy Stone's report states that he was informed 'two suspects were currently being monitored in the store.' Rambin's probable cause affidavit states he was dispatched due to Fillis's report of the September 17 theft.
42. According to Plaintiff's second attorney's motion to dismiss, Deputy Rambin testified at the grand jury that he was contacted by Kinley Baker on the night of September 18, 2024. This contradicts his own probable cause affidavit, which identifies Sarah Fillis as the reporting party. It also contradicts his body-worn camera footage, which shows that when he arrived at Target to pick up the surveillance footage (hours before Plaintiff arrived), Baker was not present — Fillis was.
43. The State thus has two sworn statements from the same officer — the probable cause affidavit and the grand jury testimony — that directly contradict each other on the fundamental question of who contacted law enforcement and why officers were present at Target.
44. The grand jury did not receive evidence of the September 17 theft or the amounts associated with it — the very basis for Plaintiff's arrest as stated in the probable cause affidavit. Instead, the grand jury received only the evidence obtained through the use of Plaintiff's booking photograph — evidence derived exclusively from the unlawful arrest.
45. The State indicted Plaintiff for Theft I under the same case number, but the indictment covered conduct between June 2, 2024, and September 19, 2024 — a range of dates and incidents that were identified solely through the post-arrest, post-misidentification investigation using Plaintiff's booking photograph.

E. The Text Messages — February 2025

46. In February 2025, the State disclosed text messages between Target loss prevention personnel and officers that had been exchanged on the night of September 18, 2024. These messages confirmed that Fillis had contacted officers specifically about Plaintiff — directly contradicting the grand jury testimony that officers were present for an 'unrelated matter.'
47. The prosecutor who conducted the January 14, 2025 grand jury had access to Rambin's probable cause affidavit, which stated the basis for the arrest was the September 17 theft by a different individual. The prosecutor nonetheless permitted witnesses to testify that officers were present for an 'unrelated matter' without correction.

F. The Unlawful Entry Into Plaintiff's Home — May 10, 2025

48. On May 10, 2025, officers from the Washington County Sheriff's Office arrived at Plaintiff's residence. They claimed that Plaintiff's partner, Barry Washington, had a 'felony warrant.'
49. No judicial warrant existed. The document authorizing Washington's arrest was an administrative order issued by Washington County Community Corrections — not a warrant issued by a neutral and detached magistrate upon a finding of probable cause. See Payton v. New York, 445 U.S. 573, 586 (1980) (holding that the Fourth Amendment prohibits warrantless entry into a home to make an arrest absent exigent circumstances).
50. Plaintiff did not consent to the officers' entry. She stepped outside her front door to speak with them. She told them she would tell Washington to come out. Each time she went back inside, she closed and locked her door. When she returned outside to inform officers that Washington appeared to have left, officers entered her home without consent, without a judicial warrant, and without exigent circumstances.
51. The entry was conducted with weapons drawn, in the presence of Plaintiff's six-year-old son, who witnessed his father being taken from the home at gunpoint.
52. On May 12, 2025, Deputy Rambin — the same officer who had misidentified Plaintiff in September 2024 — reviewed Deputy King's report and the dispatch call from the May 10 incident. Based on his review of written reports (not body-worn camera footage), Rambin concluded that it 'appeared' Plaintiff and Washington had been in contact. This conclusion was used to add a contempt charge to Washington's booking and to initiate proceedings to revoke Plaintiff's bail.
53. Rambin had a direct conflict of interest in this determination. He was the officer who had misidentified Plaintiff, who had admitted the misidentification in writing, and who had directed the manufacture of evidence to maintain the prosecution. His participation in any further investigative or identification function related to Plaintiff was inherently unreliable and tainted by his interest in seeing the prosecution continue.

G. The Bond Revocation — Based on Conditions Never Reimposed

54. When Plaintiff was re-arraigned on the indictment in February 2025, the court did not reimpose the no-contact condition that had been part of the original release agreement. Release conditions do not automatically transfer from a DA's information to an indictment upon re-arraignment — they must be explicitly stated. No such conditions were stated.
55. Despite the absence of reimposed conditions, the court revoked Plaintiff's bail based on the alleged contact between Plaintiff and Washington on May 10, 2025 — contact that was 'identified' by the conflicted officer (Rambin) through a review of written reports, not direct observation or body-worn camera footage.

H. Denial of Right to Counsel — State v. Roberts

56. Plaintiff has been on the court's unrepresented defendant list since April 29, 2025. As of the date of this complaint, Plaintiff has been without counsel for approximately 286 days.
57. On February 4, 2026, the Oregon Supreme Court held in State v. Roberts that criminal charges must be dismissed if the State fails to appoint counsel within 90 days for a felony after first appearance. Plaintiff's period without counsel exceeds the constitutional maximum by approximately 196 days.
58. During this period, the court has denied Plaintiff's prior counsel's motion to dismiss without hearing, without the State responding, and without permitting Plaintiff to be heard. The court has ignored Plaintiff's pro se demurrer for approximately nine months. The court has allowed Plaintiff's motion to quash to sit for over seven months before scheduling a hearing — and then conducted that hearing without providing Plaintiff actual notice.

HARDENING AGAINST SUMMARY JUDGMENT: ARGUABLE PROBABLE CAUSE

59. Defendants cannot claim arguable probable cause for Plaintiff's arrest. Arguable probable cause exists where 'officers of reasonable competence could disagree on whether the probable cause test was met.' Rosenbaum v. Washoe County, 663 F.3d 1071, 1076 (9th Cir. 2011). Here, no officer of reasonable competence could conclude that probable cause existed to arrest Plaintiff for the September 17 theft when: (a) no investigation was conducted prior to arrest to confirm Plaintiff's identity; (b) surveillance footage from the September 17 theft was available and in Rambin's possession but was not compared to Plaintiff before arrest; (c) the sole basis for the arrest was the uncorroborated statement of a private loss prevention employee who made a visual identification of a Black woman she had never met; and (d) the arresting officer's own statement — 'You were here yesterday' — confirms that the arrest was predicated on the false belief that Plaintiff was a different person.
60. The failure to take even the most basic investigative step — comparing the September 17 surveillance footage to the person standing in the store — before effectuating a custodial arrest eliminates any claim of arguable probable cause. See Beier v. City of Lewiston, 354 F.3d 1058, 1066 (9th Cir. 2004) (officers cannot 'turn a blind eye to facts that would have exonerated the suspect').

HARDENING AGAINST INDEPENDENT SOURCE / INEVITABLE DISCOVERY

61. The State cannot invoke the independent source doctrine or the inevitable discovery doctrine to justify the use of evidence obtained through Plaintiff's booking photograph. Under Nix v. Williams, 467 U.S. 431, 444 (1984), the inevitable discovery doctrine requires the State to demonstrate by a preponderance of the evidence that the evidence 'ultimately or inevitably would have been discovered by lawful means.' The State bears this burden. Murray v. United States, 487 U.S. 533, 537 (1988).
62. Here, the State has identified no independent source for the evidence connecting Plaintiff to prior Target incidents. The sole identified mechanism is Gower's use of Plaintiff's booking photograph — a photograph that exists only because of the unlawful arrest. The State has not identified, and cannot identify, any lawful investigative pathway that would have led to the same evidence absent the arrest. There is no indication that any investigation of Plaintiff was underway before September 18, 2024. There is no indication that Target had identified Plaintiff by name before the arrest. The booking photograph is the but-for cause of every subsequent identification.
63. Moreover, Gower — the individual who allegedly conducted this investigation — held an expired DPSST certification (expired 2020) and lacked the authority to conduct the investigatory functions attributed to him. Evidence obtained through an unauthorized investigation by an uncertified individual cannot satisfy the independent source or inevitable discovery doctrines.

HARDENING AGAINST QUALIFIED IMMUNITY

64. The constitutional violations alleged herein were clearly established at the time of the conduct. It has been clearly established since at least Wong Sun v. United States, 371 U.S. 471 (1963), that evidence obtained as a direct result of an unlawful arrest is inadmissible as fruit of the poisonous tree. It has been clearly established since at least Devereaux v. Abbey, 263 F.3d 1070 (9th Cir. 2001), that the deliberate fabrication of evidence violates the Fourth Amendment. It has been clearly established since at least Payton v. New York, 445 U.S. 573 (1980), that warrantless entry into a home to effect an arrest is unconstitutional absent exigent circumstances or a valid judicial warrant.
65. No reasonable officer could have believed that: (a) arresting a person based solely on a loss prevention employee's uncorroborated visual identification, without any investigation, was lawful; (b) directing a private entity to compile evidence against a suspect after admitting in writing that the suspect had been misidentified was lawful; (c) entering a private home without a judicial warrant, without consent, and without exigent circumstances was lawful; or (d) using his own review of written reports — as the officer who had previously misidentified the suspect — to establish a bail violation was lawful.

MONELL LIABILITY — WASHINGTON COUNTY

66. Washington County is liable under Monell v. Department of Social Services, 436 U.S. 658 (1978), because the constitutional violations described herein resulted from: (a) a policy, custom, or practice of failing to require officers to conduct identity-confirmation investigations before effectuating custodial arrests based on loss prevention identifications; (b) a policy, custom, or practice of permitting uncertified civilian employees to conduct investigatory functions reserved for certified officers; (c) a policy, custom, or practice of treating administrative community corrections orders as judicial warrants sufficient to authorize home entry; and (d) a pattern of racial profiling and discriminatory law enforcement targeting Black individuals.
67. Washington County's pattern of discriminatory conduct is evidenced by, among other things, the recent judgment in Clay v. Washington County, in which a jury awarded $800,000 in damages for discrimination by Washington County prosecutors, deputies, and judges. The Clay verdict demonstrates that the constitutional violations alleged herein are not isolated incidents but are part of a systemic pattern of discriminatory conduct.

HECK v. HUMPHREY AVOIDANCE

68. This action does not implicate Heck v. Humphrey, 512 U.S. 477 (1994), because Plaintiff has not been convicted of any offense. Heck bars § 1983 claims only where a judgment in the plaintiff's favor would 'necessarily imply the invalidity of his conviction or sentence.' Id. at 487. Where no conviction exists, Heck does not apply. See Wallace v. Kato, 549 U.S. 384, 393 (2007) (holding that a § 1983 false arrest claim accrues at the time of arrest and is not barred by a pending prosecution); Manuel v. City of Joliet, 580 U.S. 357 (2017) (holding that pretrial detention without probable cause states a Fourth Amendment claim under § 1983 regardless of the status of the prosecution).
69. Plaintiff's claims challenge the lawfulness of her arrest, the fabrication of evidence, the unlawful entry into her home, and the continuing prosecution based on tainted evidence. These claims are cognizable under § 1983 regardless of the outcome of the state criminal proceedings.

CLAIMS FOR RELIEF

FIRST CLAIM: Unlawful Arrest — Fourth Amendment (42 U.S.C. § 1983)

(Against Rambin, Orozco, Stone, and Washington County)

70. Plaintiff incorporates all preceding paragraphs.
71. Defendants Rambin, Orozco, and Stone arrested Plaintiff without probable cause, in violation of the Fourth Amendment. The arrest was based solely on the uncorroborated and false identification of Plaintiff as a different individual who had committed a theft the day before. No investigation was conducted prior to arrest. No surveillance footage was reviewed. No criminal activity by Plaintiff was observed.
72. As a direct and proximate result of this unlawful arrest, Plaintiff suffered deprivation of liberty, emotional distress, reputational harm, and continuing legal consequences.

SECOND CLAIM: Fabrication of Evidence — Fourth and Fourteenth Amendments (42 U.S.C. § 1983)

(Against Rambin, Fillis, Baker, Gower, Target Corporation, and Washington County)

73. Plaintiff incorporates all preceding paragraphs.
74. After admitting in writing that Plaintiff had been misidentified, Defendant Rambin directed Target personnel to compile surveillance footage of Plaintiff from prior store visits. This directive was issued for the purpose of manufacturing evidence to maintain a prosecution that lacked probable cause. See Devereaux v. Abbey, 263 F.3d 1070, 1074-75 (9th Cir. 2001); Spencer v. Krause, 2024 WL 3520329 (D. Or. 2024).
75. Defendant Gower, using Plaintiff's booking photograph obtained from the unlawful arrest, conducted an unauthorized investigation to connect Plaintiff to prior incidents — despite holding an expired DPSST certification.
76. Defendants Baker and Fillis participated in the fabrication by providing false or misleading testimony and evidence to support the prosecution.

THIRD CLAIM: Malicious Prosecution — Fourth Amendment (42 U.S.C. § 1983)

(Against Rambin, Orozco, Washington County, Fillis, Baker, and Target Corporation)

77. Plaintiff incorporates all preceding paragraphs.
78. Defendants initiated and continued criminal proceedings against Plaintiff without probable cause and with knowledge that the arrest was based on a misidentification. The prosecution was maintained through the presentation of perjured testimony to a grand jury, the manufacture of evidence after the misidentification was admitted, and the use of derivative evidence obtained exclusively through the unlawful arrest.
79. The prosecution was initiated and maintained with malice — not for the purpose of bringing a guilty person to justice, but for the purpose of concealing the misidentification and avoiding liability for the unlawful arrest.
80. Plaintiff has suffered and continues to suffer injury as a result, including but not limited to: deprivation of liberty, an outstanding warrant for her arrest, inability to secure employment, emotional distress, and harm to her relationship with her children.

FOURTH CLAIM: Unlawful Entry — Fourth Amendment (42 U.S.C. § 1983)

(Against Washington County and DOES 1-5)

81. Plaintiff incorporates all preceding paragraphs.
82. On May 10, 2025, officers entered Plaintiff's private residence without a judicial warrant, without consent, and without exigent circumstances, in violation of the Fourth Amendment. See Payton v. New York, 445 U.S. 573 (1980). The administrative order relied upon by officers was not a judicial warrant and did not authorize home entry.
83. The entry was conducted with weapons drawn in the presence of Plaintiff's six-year-old child, causing severe emotional trauma.
84. Evidence obtained as a result of this unlawful entry — including the observation of Plaintiff's presence in the home — was subsequently used to revoke Plaintiff's bail and to add criminal charges.

FIFTH CLAIM: Conspiracy to Deprive of Equal Protection — 42 U.S.C. § 1985(3)

(Against Rambin, Orozco, Stone, Fillis, Baker, Gower, and Target Corporation)

85. Plaintiff incorporates all preceding paragraphs.
86. Defendants conspired to deprive Plaintiff of equal protection of the laws, motivated by racial animus. The conspiracy included: (a) the racially motivated misidentification of Plaintiff as a different Black woman; (b) the coordinated manufacture of evidence after the misidentification was admitted; (c) the presentation of false testimony to the grand jury; and (d) the continuing prosecution based on tainted evidence.
87. The conspiracy was facilitated by the coordinated actions of law enforcement officers and private actors (Target employees), who acted in concert to maintain the prosecution despite knowledge of the misidentification.

SIXTH CLAIM: False Arrest — Oregon State Law

(Against Rambin, Orozco, Stone, and Washington County)

88. Plaintiff incorporates all preceding paragraphs.
89. Defendants arrested Plaintiff without probable cause or legal justification. Under Oregon law, a person who is arrested without probable cause has a claim for false arrest. The arrest was not supported by probable cause because no criminal activity by Plaintiff was observed, no investigation was conducted prior to arrest, and the sole basis for the arrest was a false identification.

SEVENTH CLAIM: Intentional Infliction of Emotional Distress — Oregon State Law

(Against All Defendants)

90. Plaintiff incorporates all preceding paragraphs.
91. Defendants' conduct — including the misidentification, unlawful arrest, manufacture of evidence, perjured testimony, unlawful home entry in front of a child, and continuing malicious prosecution — was extreme and outrageous, exceeded all bounds of decency tolerated in a civilized society, and was undertaken with the intent to cause, or with reckless disregard of the probability of causing, severe emotional distress.
92. Plaintiff has suffered severe emotional distress as a result, including anxiety, fear of arrest, inability to secure employment, disruption of her family, and harm to her children.

EIGHTH CLAIM: Civil Conspiracy — Oregon State Law

(Against All Defendants)

93. Plaintiff incorporates all preceding paragraphs.
94. Defendants entered into an agreement to accomplish the unlawful purpose of maintaining a prosecution against Plaintiff despite knowledge that the arrest was based on a misidentification. In furtherance of this conspiracy, Defendants manufactured evidence, presented false testimony, and used derivative evidence from the unlawful arrest.

DAMAGES

95. As a direct and proximate result of Defendants' conduct, Plaintiff has suffered and continues to suffer:

a. Loss of liberty (two days in jail following arrest; outstanding warrant);
b. Emotional distress, anxiety, fear, and humiliation;
c. Harm to reputation;
d. Loss of employment opportunities, including a pending offer from MOTUS that is jeopardized by the outstanding warrant and pending charges;
e. Disruption of family life, including the trauma inflicted on her six-year-old son;
f. Legal expenses and costs of defending against a prosecution maintained through fabricated evidence;
g. Loss of housing stability;
h. Continuing deprivation of the right to counsel for 286 days and counting.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff respectfully requests that this Court:

96. Enter judgment in Plaintiff's favor on all claims;
97. Award compensatory damages in an amount to be proven at trial, but believed to exceed $750,000;
98. Award punitive damages against each individual Defendant in an amount sufficient to deter future misconduct;
99. Issue a declaratory judgment that Defendants violated Plaintiff's rights under the Fourth and Fourteenth Amendments to the United States Constitution;
100. Award Plaintiff her reasonable attorneys' fees and costs pursuant to 42 U.S.C. § 1988;
101. Award such other and further relief as this Court deems just and equitable.

JURY DEMAND

Plaintiff demands a trial by jury on all claims and issues so triable.

Respectfully submitted,

Ash Le' Penn, Pro Se
[Address]
[Phone]
ashlepenn.ap3@gmail.com

Date: _____, 2026

OREGON COMMISSION ON JUDICIAL FITNESS AND DISABILITY
Rachel L. Mortimer, Executive Director
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COMPLAINT AGAINST THE HONORABLE JUDGE THOMPSON
Washington County Circuit Court
Chief Criminal Judge

Filed by: Ashle' Penn
Date: February 11, 2026
Case Reference: State v. Penn, Case No. 24CR49043, Washington County Circuit Court

SUMMARY

This complaint concerns the conduct of Judge Thompson, the Chief Criminal Judge of Washington County Circuit Court, in the above-referenced criminal case spanning from April 29, 2025 to the present. The specific conduct complained of includes: reliance on ex parte communications from another judge's chambers to make adverse findings against the Complainant on the record; misrepresentation of the judicial record; prejudgment of the merits of a pending criminal case; denial of the right to be heard; denial of substantive motions without hearing while stating the court would not decide anything; and failure to process or rule on timely filed motions for over nine months.

Complainant has audio recordings of every hearing and telephone call referenced in this complaint and is prepared to provide them to the Commission. A transcript of the April 29, 2025 hearing is attached. The judge's own words, quoted verbatim below, are taken from that transcript.

FACTUAL BACKGROUND

Complainant is the defendant in a felony theft prosecution, Case No. 24CR49043. The case originated with a documented misidentification — the arresting officer, Deputy David Rambin, mistakenly believed Complainant was a different Black woman who had committed a theft the prior day. Deputy Rambin acknowledged the misidentification in a supplemental police report.

Complainant has had two appointed attorneys in this case. Both withdrew. Complainant has been on the court's unrepresented list since April 29, 2025 — 286 days as of this filing.

SPECIFIC CONDUCT

1. Ex Parte Communications Between Judicial Officers (Rule 2.9)

At the April 29, 2025 hearing, Judge Thompson stated on the record:

"This is your second lawyer and the first lawyer as, my understanding, went through similar situations."

"You don't understand that your first lawyer didn't do what you wanted and that created a conflict."

The interaction between Complainant and her first attorney occurred in Judge Colburn's chambers — not before Judge Thompson, not on the record in any proceeding presided over by Judge Thompson, and not in any transcript in this case. Judge Colburn presides over a different division and is not the chief criminal judge.

For Judge Thompson to possess detailed information about the nature of the attorney-client relationship between Complainant and her first counsel — and to characterize that relationship on the record — necessarily means a communication occurred between two judicial officers, outside the presence of the parties, concerning a pending criminal case.

Oregon Code of Judicial Conduct, Rule 2.9(A) prohibits a judge from initiating, permitting, or considering ex parte communications concerning a pending matter. The exception for "court staff and court officials whose functions require such consultation" does not extend to judges of other divisions. See In re Conduct of Roth, 293 Or. 179 (1982).

2. Misrepresentation of the Record (Rules 2.2, 2.6)

When Complainant objected to the characterization, the following exchange occurred:

Complainant: "No, that's not correct. I object, your honor."
Judge Thompson: "And you don't get to object now. Those are the facts that are on the record."

These facts are demonstrably not on the record. No transcript in this case contains any finding about the nature of Complainant's relationship with her first attorney. The in-chambers interaction occurred before a different judge. Telling a defendant that off-record information constitutes "the facts on the record" — and then prohibiting objection — is a misrepresentation of the judicial record used to silence a party.

3. Prejudgment of the Merits (Rule 2.2)

At the same hearing, after Complainant stated that her first attorney withdrew because she would not argue the misidentification — and that Complainant was correct about the misidentification — the following exchange occurred:

Complainant: "When she wouldn't argue for me that I was misidentified and I was correct."
Judge Thompson: "That doesn't matter."
Complainant: "It absolutely matters, Your Honor."
Judge Thompson: "No, Ms. Penn, I already pulled the cases on this. And I'm telling you the law is not in your favor."

This statement was made:

- Before any substantive hearing in this case
- Before any evidence was presented
- Before any motions were argued
- At a hearing the Court itself had characterized as not a hearing on the merits ("I'm not making a decision today about anything")
- On the same day the omnibus hearing — where evidence was to be tested — was converted to a withdrawal hearing

Announcing to a pro se defendant that the court has independently researched the case and reached a conclusion adverse to the defendant, before any adversarial proceedings, creates at minimum the appearance of prejudgment and is inconsistent with Rule 2.2's requirement of impartial application of the law.

The statement "that doesn't matter" is particularly concerning. A documented misidentification — admitted by the arresting officer in a supplemental report — is a constitutional issue implicating the Fourth Amendment and Article I, Section 9 of the Oregon Constitution. For a presiding judge to dismiss it as irrelevant, without briefing, without argument, and without a hearing, communicates to the defendant that the court has already decided the issue.

4. Denial of the Right to Be Heard (Rule 2.6)

Complainant stated: "I do believe that I have a right to be heard."
Judge Thompson stated: "You have the right to be heard."
Complainant stated: "Then I would like to be heard."
Judge Thompson stated: "We're getting you another lawyer."

At no point during the hearing was Complainant permitted to substantively address the merits of her case, the misidentification, or the constitutional issues she sought to raise. The Court acknowledged the right to be heard and simultaneously denied its exercise.

5. Deciding Motions After Stating He Would Not (Rules 2.5, 2.6)

The Court stated on the record: "There's no record to preserve. I'm not making a decision today about anything."

Approximately two months later, the Court denied Complainant's prior counsel's motion to dismiss. This motion — which documented contradictions between the arresting officer's probable cause affidavit and his grand jury testimony — was denied:

- Without a hearing
- Without oral argument
- Without the State having filed any response
- Without an omnibus hearing
- While Complainant was on the unrepresented list
- After the Court stated it would not decide anything

6. Failure to Rule on Timely Filed Motions (Rules 2.4, 2.5)

Complainant filed a demurrer prior to the converted omnibus hearing, having preserved the right to challenge the charging instrument at both arraignments. The demurrer has received no ruling for over nine months as of this filing.

Complainant filed a Motion to Quash Warrant on July 1, 2025. It was not processed for over seven months.

These are not discretionary delays in complex matters. They are the absence of any action whatsoever on properly filed motions in a case where the defendant is without counsel, has an active warrant, and has been unable to secure housing or employment.

7. Proceeding in Defendant's Absence Without Adequate Notice

On February 9, 2026, the Court held a hearing on Complainant's Motion to Quash. Complainant did not receive constitutionally adequate notice. Her contact information had been changed by a criminal justice employee without her knowledge or consent, causing text message notifications to fail. The Oregon Judicial Department's own publications state that text message notifications "do not replace official court notices" and are "supplemental communications."

When Complainant contacted the court on February 11, 2026, the clerk stated that no written order had been entered — only an internal note that the "warrant is to stay in place." No findings were issued. No signed order was filed. Under ORS 3.070, court orders must be signed by the judge and filed with the clerk to become effective.

PATTERN OF CONDUCT

These are not isolated incidents. They constitute a pattern: ex parte reliance on off-record information to characterize the defendant; prejudgment of constitutional issues before any hearing; denial of the right to be heard; affirmative statements that motions would not be decided followed by adverse decisions made without the defendant's knowledge or participation; failure to process or rule on motions for months; and proceedings held in the defendant's absence without adequate notice, resulting in unsigned notations rather than judicial orders.

This pattern has occurred entirely in the context of a case in which the defendant is a Black woman who was arrested based on a documented racial misidentification and who has been on the unrepresented list for 286 days.

REQUESTED RELIEF

Complainant respectfully requests that the Commission investigate the conduct described above and take appropriate action. Complainant is prepared to provide:

- Audio recording and transcript of the April 29, 2025 hearing (attached)
- Audio recordings of all other hearings in Case No. 24CR49043
- All court filings, including the unruled demurrer, the motion to quash, and prior counsel's motion to dismiss
- The case docket showing the timeline of filings and (non-)rulings
- Any additional documentation requested by the Commission

Complainant understands that the Commission does not have the authority to alter judicial decisions. Complainant is not asking the Commission to reverse any ruling. Complainant is asking the Commission to examine whether the conduct of the presiding judge — the reliance on ex parte communications, the misrepresentation of the record, the prejudgment, the denial of the right to be heard, and the failure to process filings — is consistent with the Oregon Code of Judicial Conduct.

Respectfully submitted,

Ashle' Penn
[Address]
[Phone Number]
[Email Address]
Date: February 11, 2026

Attachment: Transcript of April 29, 2025 Hearing, Case No. 24CR49043

OREGON STATE BAR
CLIENT ASSISTANCE OFFICE
16037 SW Upper Boones Ferry Road
P.O. Box 231935
Tigard, Oregon 97281-1935

ETHICS COMPLAINT

Complainant: Ashle' Penn
Date: February 11, 2026

RESPONDENT ATTORNEYS

1. Jade Sawyer, Bar No. 250555, Deputy District Attorney, Washington County (former)
2. Anna Lasher, appointed defense counsel, Washington County (Case No. 24CR49043)
3. Dani Carison, Harris Velasquez Gibbons, appointed defense counsel, Washington County

INTRODUCTION

This complaint arises from the prosecution and defense of a criminal case in Washington County Circuit Court, Case No. 24CR49043, and a related contempt proceeding, Case No. 25CN02140. The conduct described below involves three attorneys whose independent ethical violations have compounded to deprive Complainant of her constitutional rights and to obstruct the fair administration of justice.

Complainant submits this as a combined complaint because the violations are interconnected: the defense attorneys' failures left Complainant without effective advocacy against the prosecution's misconduct, and the prosecution's misconduct was aided by the absence of defense counsel willing to challenge it. The Bar's review of each attorney's conduct will be informed by understanding the full picture.

Complainant has maintained detailed records throughout these proceedings, including audio recordings of all hearings and telephone calls. Complainant is prepared to provide these recordings and all supporting documentation upon request.

RESPONDENT 1: JADE SAWYER (Bar No. 250555)

Relevant Rules: Oregon RPC 3.1 (Meritorious Claims and Contentions); RPC 3.3 (Candor Toward the Tribunal); RPC 3.4 (Fairness to Opposing Party and Counsel); RPC 3.8 (Special Responsibilities of a Prosecutor); RPC 8.4 (Misconduct)

Summary of Conduct

Ms. Sawyer served as the Deputy District Attorney assigned to the related contempt case (25CN02140) involving Complainant's partner. In that capacity, Ms. Sawyer submitted a brief to the court defending the lawfulness of law enforcement's warrantless entry into Complainant's

private residence on May 10, 2025. The factual and legal representations in that filing were false, internally contradictory, and directly contrary to clearly established constitutional law.

Specific Violations

4. False and Contradictory Representations to the Court (RPC 3.3)

In her response to defense counsel's motion to suppress, Ms. Sawyer alternated between characterizing the document authorizing the arrest as an "arrest order" (in the Statement of Facts: "Deputy King notified Ms. Penn about the arrest order"; "Deputy King verified the active arrest order") and an "arrest warrant" (in the Argument section: "lawfully conducted under a valid arrest warrant"). This alternation within a single filing is not a scrivener's error — it reflects an awareness that the legal distinction between an administrative order and a judicial warrant is dispositive of the constitutional question and an attempt to obscure that distinction before the court.

Payton v. New York, 445 U.S. 573 (1980), requires a judicial warrant supported by probable cause for entry into a home. An administrative supervisory order based on "reasonable grounds" — a standard Ms. Sawyer herself invoked in her filing — does not satisfy this constitutional requirement.

5. Defending an Unlawful Entry with Frivolous Legal Arguments (RPC 3.1)

Ms. Sawyer argued that an administrative order signed by a supervisory authority — not a judge, not a magistrate — constituted a "valid arrest warrant" authorizing home entry. She simultaneously acknowledged that the standard undergirding the order was "reasonable grounds" under ORS 144.350(1), not probable cause. This concession is fatal to her own argument. Arguing that an administrative order based on reasonable suspicion satisfies the probable cause requirement for home entry is a position that has no basis in existing law and cannot be supported by a good faith argument for the extension, modification, or reversal of existing law.

6. The Warrant Materialization (RPC 3.3, 3.4)

Defense counsel Jake Brugger stated in his July 3, 2025 motion to suppress that no written or signed warrant existed — only a LEDS entry. For approximately seventy-five days after the arrest, the State could not produce the document. Defense counsel visited his client in custody multiple times and reported that the State was unable to produce a warrant. After being informed by Ms. Sawyer that the CJI (Criminal Justice Information) form was the "warrant," defense counsel filed his motion to suppress stating exactly that.

Approximately seventy-five days after the arrest — and after defense counsel's motion was filed — the State produced a "Warrant Authorization and Suspension Order" signed by Kenneth Rolfe, a supervisory authority designee. Mr. Rolfe was laid off by the agency on or about May 27, 2025, weeks after the entry. Efforts to subpoena Mr. Rolfe for testimony have been met with resistance.

The timeline of this document's production — its non-existence for seventy-five days, its sudden appearance after a motion to suppress was filed, the layoff of its signatory, and the resistance to his testimony — warrants scrutiny by this body.

7. Ms. Sawyer's Departure

Ms. Sawyer is no longer employed by the Washington County District Attorney's Office. She departed shortly after filing the brief described above. Her departure does not moot the ethical inquiry into the representations she made while acting as an officer of the court.

RESPONDENT 2: ANNA LASHER

Relevant Rules: Oregon RPC 1.1 (Competence); RPC 1.3 (Diligence); RPC 1.4 (Communication); RPC 1.6 (Confidentiality of Information)

Summary of Conduct

Ms. Lasher was appointed as Complainant's second counsel on October 11, 2024 — the same day Complainant's first counsel withdrew. She represented Complainant until her own withdrawal on April 29, 2025.

Specific Violations

8. Disclosure of Confidential Information (RPC 1.6)

On April 29, 2025, Ms. Lasher participated in an in-chambers conference with Judge Thompson from which Complainant was excluded. Following that conference, Judge Thompson made statements on the record characterizing Complainant's behavior in terms that could only have been derived from information communicated by Ms. Lasher in chambers. Specifically, the Court stated that Complainant "gets upset when [lawyers] won't do what [she] wants them to." Ms. Lasher did not obtain Complainant's informed consent to disclose any information relating to the representation.

Ms. Lasher cited Oregon RPC 1.7 — a personal interest conflict — as the basis for withdrawal. Even if disclosure of the existence of a conflict was necessary, disclosure of the substance of the attorney-client relationship — including characterizations of the client's behavior — was not authorized by the conflict exception and was not consented to by the client.

9. Failure to File Agreed-Upon Motion (RPC 1.3)

Complainant informed Ms. Lasher of her right to file a demurrer and requested that she do so. Ms. Lasher stated that a motion to dismiss was "the same thing" as a demurrer. It is not. A demurrer challenges the sufficiency of the charging instrument on its face. A motion to dismiss raises different grounds. Ms. Lasher agreed to file substantive pretrial motions before the omnibus hearing but failed to file the demurrer. Complainant filed the demurrer pro se to preserve the issue.

10. Delay in Filing Motion for Preliminary Hearing (RPC 1.3)

Complainant informed Ms. Lasher at a November 2024 hearing that she had demanded a preliminary hearing in open court on October 11, 2024. Ms. Lasher stated the request had to be in writing. She did not file the written motion until December 24, 2024 — more than two months after appointment and after the 30-day statutory window. The State took the case to grand jury on January 14, 2025, before the motion could be heard.

RESPONDENT 3: DANI CARISON (Harris Velasquez Gibbons)

Relevant Rules: Oregon RPC 1.2 (Scope of Representation); RPC 1.4 (Communication); RPC 1.6 (Confidentiality of Information)

Summary of Conduct

Ms. Carison was appointed as Complainant's first counsel through the firm Harris Velasquez Gibbons. She represented Complainant briefly in the early stages of Case No. 24CR49043.

Specific Violations

11. Unauthorized Rejection of ECR Offer (RPC 1.2)

Ms. Carison rejected an Early Case Resolution offer without Complainant's authorization. When Complainant raised this with the court, the court told Complainant to "take your lawyer." Decisions about whether to accept or reject plea offers belong to the client, not the attorney. Oregon RPC 1.2(a) provides that "a lawyer shall abide by a client's decisions concerning the objectives of representation."

12. Disclosure of Confidential Information (RPC 1.6)

Whatever occurred between Ms. Carison and Judge Colburn in chambers was communicated without Complainant's informed consent. That information was later used by Judge Thompson — a different judge — to characterize Complainant on the record in a subsequent proceeding. Complainant did not authorize any disclosure by Ms. Carison of information relating to the representation.

13. Failure to Communicate (RPC 1.4)

Ms. Carison appeared at a hearing having spoken with Complainant for less than five minutes. She had not provided discovery. She stated there was "no change in circumstance since the first arrest." She did not discuss the case substantively with Complainant before the hearing.

IMPACT ON COMPLAINANT

The cumulative effect of these violations has been devastating:

- Complainant has been on the unrepresented list for 286 days following two attorney withdrawals that this complaint documents were accompanied by confidentiality violations.
- The prosecution has maintained a case based on a documented misidentification, using manufactured evidence and false grand jury testimony, without effective defense challenge.
- Complainant has an active warrant for her arrest based on a bail revocation predicated on evidence from an unlawful home entry — an entry defended by DDA Sawyer with representations this complaint documents were false.
- Complainant has been unable to secure stable housing or employment for herself and her three children.
- The court has, on the record, used information obtained through these confidentiality violations to characterize Complainant and to justify denying her further appointed counsel.

REQUESTED ACTION

Complainant respectfully requests that the Oregon State Bar investigate each respondent attorney's conduct as described above and take appropriate disciplinary action. Complainant is prepared to provide:

- Audio recordings of all hearings referenced
- The April 29, 2025 hearing transcript
- All court filings from Case No. 24CR49043 and Case No. 25CN02140
- Officer reports, discovery materials, and supplemental reports
- DDA Sawyer's response brief in the contempt case
- Defense counsel Brugger's motion to suppress
- Any additional documentation requested by the Bar

Respectfully submitted,

Ashle' Penn
[Address]
[Phone Number]
[Email Address]
Date: February 11, 2026